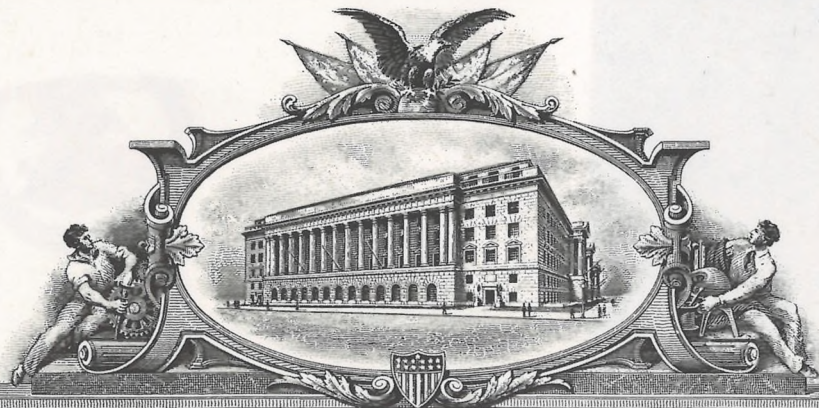


Appendix B

Certified Copy of Prosecution History of U.S. Patent No.
8,297,693

8718772



THE UNITED STATES OF AMERICA

TO ALL TO WHOM THESE PRESENTS SHALL COME:

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office

July 2, 2026

THIS IS TO CERTIFY THAT ANNEXED IS A TRUE COPY FROM THE
RECORDS OF THIS OFFICE OF THE FILE WRAPPER AND CONTENTS
OF:

APPLICATION NUMBER: 13/228,746

FILING DATE: *September 9, 2011*

PATENT NUMBER: 8,297,693

ISSUE DATE: *October 30, 2012*

By Authority of the
Under Secretary of Commerce for Intellectual Property
and Director of the United States Patent and Trademark Office

Shakena Harrison

Shakena Harrison
Certifying Officer



Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.

UTILITY PATENT APPLICATION TRANSMITTAL

(Only for new nonprovisional applications under 37 CFR 1.53(b))

Attorney Docket No.	4362-138IPCT
First Inventor	D. Stephen Hoffman
Title	Reciprocating Seating Unit with P..
Express Mail Label No.	

APPLICATION ELEMENTS

See MPEP chapter 600 concerning utility patent application contents.

1. ☒ **Fee Transmittal Form** (e.g., PTO/SB/17)
2. ☒ **Applicant claims small entity status.**
See 37 CFR 1.27.
3. ☒ **Specification** [Total Pages 17]
Both the claims and abstract must start on a new page
(For information on the preferred arrangement, see MPEP 608.01(a))
4. ☒ **Drawing(s)** (35 U.S.C. 113) [Total Sheets 8]
5. **Oath or Declaration** [Total Sheets 4]
 - a. ☐ Newly executed (original or copy)
 - b. ☒ A copy from a prior application (37 CFR 1.63(d))
(for continuation/divisional with Box 18 completed)
 - i. ☐ **DELETION OF INVENTOR(S)**
Signed statement attached deleting inventor(s)
name in the prior application, see 37 CFR
1.63(d)(2) and 1.33(b).
6. ☐ **Application Data Sheet.** See 37 CFR 1.76
7. ☐ **CD-ROM or CD-R** in duplicate, large table or
Computer Program (Appendix)
☐ Landscape Table on CD
8. **Nucleotide and/or Amino Acid Sequence Submission**
(if applicable, items a. - c. are required)
 - a. ☒ Computer Readable Form (CRF)
 - b. **Specification Sequence Listing on:**
 - i. ☐ CD-ROM or CD-R (2 copies); or
 - ii. ☐ Paper
 - c. ☐ Statements verifying identity of above copies

ACCOMPANYING APPLICATION PARTS

9. ☐ **Assignment Papers** (cover sheet & document(s))
Name of Assignee _____
10. ☐ **37 CFR 3.73(b) Statement** ☐ **Power of Attorney**
(when there is an assignee)
11. ☐ **English Translation Document** (if applicable)
12. ☒ **Information Disclosure Statement** (PTO/SB/08 or PTO-1449)
☐ Copies of citations attached
13. ☐ **Preliminary Amendment**
14. ☐ **Return Receipt Postcard** (MPEP 503)
(Should be specifically itemized)
15. ☐ **Certified Copy of Priority Document(s)**
(if foreign priority is claimed)
16. ☐ **Nonpublication Request** under 35 U.S.C. 122(b)(2)(B)(i).
Applicant must attach form PTO/SB/35 or equivalent.
17. ☐ Other: _____

18. If a CONTINUING APPLICATION, check appropriate box, and supply the requisite information below and in the first sentence of the specification following the title, or in an Application Data Sheet under 37 CFR 1.76:

☒ Continuation ☐ Divisional ☐ Continuation-in-part (CIP) of prior application No.: 12/508,902

Prior application information:

Examiner Milton Nelson Jr.

Art Unit: 3636

19. CORRESPONDENCE ADDRESS

☒ The address associated with Customer Number: 20792 OR ☐ Correspondence address below

Name

Address

City

State

Zip Code

Country

Telephone

Email

Signature

Date

September 9, 2011

Name
(Print/Type)

James R. Cannon

Registration No.
(Attorney/Agent)

35,839

This collection of information is required by 37 CFR 1.53(b). The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.11 and 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.

If you need assistance in completing the form, call 1-800-PTO-9199 and select option 2.

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Effective on 12/08/2004.

Fees pursuant to the Consolidated Appropriations Act, 2005 (H.R. 4818).

**FEE TRANSMITTAL
For FY 2009**☒ Applicant claims small entity status. See 37 CFR 1.27

TOTAL AMOUNT OF PAYMENT (\$) 462.00

Complete if Known

Application Number	not yet assigned
Filing Date	September 9, 2011
First Named Inventor	D. Stephen Hoffman
Examiner Name	TBA
Art Unit	TBA
Attorney Docket No.	4362-138IPCT

METHOD OF PAYMENT (check all that apply)☐ Check ☐ Credit Card ☐ Money Order ☐ None ☐ Other (please identify): _____☒ Deposit Account Deposit Account Number: 50-0220 Deposit Account Name: Myers Bigel

For the above-identified deposit account, the Director is hereby authorized to: (check all that apply)

☒ Charge fee(s) indicated below ☐ Charge fee(s) indicated below, except for the filing fee☐ Charge any additional fee(s) or underpayments of fee(s) under 37 CFR 1.16 and 1.17 ☐ Credit any overpayments

WARNING: Information on this form may become public. Credit card information should not be included on this form. Provide credit card information and authorization on PTO-2038.

FEE CALCULATION**1. BASIC FILING, SEARCH, AND EXAMINATION FEES**

Application Type	FILING FEES		SEARCH FEES		EXAMINATION FEES		Fees Paid (\$)
	Fee (\$)	Small Entity Fee (\$)	Fee (\$)	Small Entity Fee (\$)	Fee (\$)	Small Entity Fee (\$)	
Utility	330	165	540	270	220	110	545.00
Design	220	110	100	50	140	70	
Plant	220	110	330	165	170	85	
Reissue	330	165	540	270	650	325	
Provisional	220	110	0	0	0	0	

2. EXCESS CLAIM FEES**Fee Description**

Each claim over 20 (including Reissues)

Fee (\$)	Small Entity Fee (\$)
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52 26

Each independent claim over 3 (including Reissues)

220 110

Multiple dependent claims

390 195

Total Claims	Extra Claims	Fee (\$)	Fee Paid (\$)
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11 - 20 or HP = 0 x =

HP = highest number of total claims paid for, if greater than 20.

Indep. Claims	Extra Claims	Fee (\$)	Fee Paid (\$)
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1 - 3 or HP = 0 x =

HP = highest number of independent claims paid for, if greater than 3.

3. APPLICATION SIZE FEE

If the specification and drawings exceed 100 sheets of paper (excluding electronically filed sequence or computer listings under 37 CFR 1.52(e)), the application size fee due is \$270 (\$135 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR 1.16(s).

Total Sheets	Extra Sheets	Number of each additional 50 or fraction thereof	Fee (\$)	Fee Paid (\$)
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- 100 = / 50 = (round up to a whole number) x =

4. OTHER FEE(S)

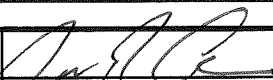
Non-English Specification, \$130 fee (no small entity discount)

Fees Paid (\$)

Other (e.g., late filing surcharge):

SUBMITTED BY

Signature

Registration No.
(Attorney/Agent) 35,839

Telephone 919 854 1400

Name (Print/Type) James R. Cannon

Date September 9, 2011

This collection of information is required by 37 CFR 1.136. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 30 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.

If you need assistance in completing the form, call 1-800-PTO-9199 and select option 2.

RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

Related Application

[0001] This application is a continuation application of U.S. Patent Application No. 12/508,901, filed July 24, 2009, which is a continuation-in-part of U.S. Patent Application No. 12/276,567, filed November 24, 2008 (now U.S. Patent No. 7,997,644, issued August 16, 2011, the disclosure of each of which is hereby incorporated herein in its entirety.

Field of the Invention

[0002] This invention relates generally to seating units, and relates more particularly to reclining seating units with rocking capability.

Background of the Invention

[0003] Recliner chairs and other reclining seating units have proven to be popular with consumers. These seating units typically move from an upright position, in which the backrest is generally upright, to one or more reclined positions, in which the backrest pivots to be less upright. The movement of the seating unit between the upright and reclined positions is typically controlled by a pair of matching reclining mechanisms that are attached to the seat, backrest and base of the chair.

[0004] In recent years, furniture designers have looked for alternatives to rocking chairs that can provide a similarly relaxing repetitive motion. One alternative has been the gliding chair, or "glider", which includes structure that enables the seat portion of the chair to "glide" forwardly and rearwardly relative to its base to mimic generally the rocking motion of a

rocking chair. Often the gliding structure comprises a set of swing links (usually two at the front of the chair, and two at the rear) that are pivotally attached at their upper ends to the base and extend downwardly therefrom to attach to a structure, such as a mounting bracket, that is attached to the seat. In this configuration, the seat is suspended from the base and is free to swing forwardly and rearwardly in a double pendulum-type motion in response to a forwardly or rearwardly-directed force applied by a seated occupant. The gliding path of the chair is controlled by the configuration and mounting of the swing links. These chairs can be constructed to resemble traditional rocking chairs and thus are quite popular.

[0005] Reclining capability has been combined with gliding capability in a single unit to provide a chair that both reclines and glides. This chair includes a reclining mechanism that enables it to move between upright and one or more reclined positions, and further includes the aforementioned swing links attached between the base and the seat, armrests, or mechanism itself to enable the chair to glide. Examples of such chairs are illustrated and described in U.S. Patent Nos. 4,536,029 and 4,544,201, both to Rogers, Jr., the disclosures of which are hereby incorporated herein by reference in their entireties.

[0006] Although they are already popular seating units, it may be desirable to provide additional functionality to glider-recliners.

Summary of the Invention

[0007] As a first aspect, embodiments of the present invention are directed to a reciprocating and reclining seating unit. The seating unit comprises: a base unit with a first bearing surface; a generally horizontally-disposed seat positioned above the base; a generally upright backrest positioned above the base and substantially rearward of the seat; an extendable ottoman; a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links; a reciprocating mechanism attached to the base unit and the reclining mechanism, the reciprocating mechanism being configured to enable the seat, backrest and reclining mechanism to reciprocate relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and a power actuating unit attached to the reclining mechanism, the actuating unit configured to move the

chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases. The actuating unit is attached to an actuating mechanism, the actuating mechanism comprising a cross-member extending transversely across the seating unit and first and second projections fixed to the cross-member. The first projection is pivotally attached to the actuating unit. The second projection is pivotally attached to a lower swing link of the reclining mechanism, the lower swing link being pivotally attached to an upper swing link of the reclining mechanism and to a mounting bracket that is attached to the reciprocating mechanism.

[0008] As a second aspect, embodiments of the present invention are directed to a reciprocating and reclining seating unit, comprising: a base unit with a first bearing surface; a generally horizontally-disposed seat positioned above the base; a generally upright backrest positioned above the base and substantially rearward of the seat; an extendable ottoman; a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links; a reciprocating mechanism attached to the base unit and the reclining mechanism, the reciprocating mechanism being configured to enable the seat, backrest and reclining mechanism to reciprocate relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and a power linear actuating unit attached to the reclining mechanism, the actuating unit including a motor and an extendable rod and configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases. The actuating unit is attached to an actuating mechanism, the actuating

mechanism comprising: a cross-member extending transversely across the seating unit; and first and second projections fixed to the cross-member. The first projection is pivotally attached to the actuating unit. The second projection is pivotally attached to a lower swing link of the reclining mechanism, the lower swing link being pivotally attached to an upper swing link of the reclining mechanism and to a mounting bracket that is attached to the reciprocating mechanism. The actuating unit includes opposed first and second ends, wherein the first end of the actuating unit moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the actuating unit moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

Brief Description of the Figures

[0009] **Figure 1** is a perspective view of a glider-recliner chair according to embodiments of the present invention.

[0010] **Figure 2** is a side section view of the chair of **Figure 1** with the chair in its fully upright position.

[0011] **Figure 2A** is an enlarged side section view of the actuating mechanism of the chair of **Figure 1** with the chair in its fully upright position.

[0012] **Figure 3** is a side section view of the chair of **Figure 1** with the chair in its TV position.

[0013] **Figure 3A** is an enlarged side section view of the actuating mechanism of the chair of **Figure 1** with the chair in its TV position.

[0014] **Figure 4** is a side section view of the chair of **Figure 1** with the chair in its fully reclined position.

[0015] **Figure 4A** is an enlarged side section view of the actuating mechanism of the chair of **Figure 1** with the chair in its fully reclined position.

[0016] **Figure 5** is a top cutaway view of the frame of the chair of **Figure 1**.

Detailed Description of Embodiments of the Invention

[0017] The present invention now is described more fully hereinafter with reference to the accompanying drawings, in which embodiments of the invention are shown. This invention may, however, be embodied in many different forms and should not be construed as limited to the embodiments set forth herein; rather, these embodiments are provided so that this disclosure will be thorough and complete, and will fully convey the scope of the invention to those skilled in the art.

[0018] Like numbers refer to like elements throughout. In the figures, the thickness of certain lines, layers, components, elements or features may be exaggerated for clarity. Broken lines illustrate optional features or operations unless specified otherwise.

[0019] The terminology used herein is for the purpose of describing particular embodiments only and is not intended to be limiting of the invention. As used herein, the singular forms "a", "an" and "the" are intended to include the plural forms as well, unless the context clearly indicates otherwise. It will be further understood that the terms "comprises" and/or "comprising," when used in this specification, specify the presence of stated features, integers, steps, operations, elements, and/or components, but do not preclude the presence or addition of one or more other features, integers, steps, operations, elements, components, and/or groups thereof. As used herein, the term "and/or" includes any and all combinations of one or more of the associated listed items. As used herein, phrases such as "between X and Y" and "between about X and Y" should be interpreted to include X and Y. As used herein, phrases such as "between about X and Y" mean "between about X and about Y." As used herein, phrases such as "from about X to Y" mean "from about X to about Y."

[0020] Unless otherwise defined, all terms (including technical and scientific terms) used herein have the same meaning as commonly understood by one of ordinary skill in the art to which this invention belongs. It will be further understood that terms, such as those defined in commonly used dictionaries, should be interpreted as having a meaning that is consistent with their meaning in the context of the specification and relevant art and should not be interpreted in an idealized or overly formal sense unless expressly so defined herein. Well-known functions or constructions may not be described in detail for brevity and/or clarity.

[0021] It will be understood that when an element is referred to as being "on", "attached" to, "connected" to, "coupled" with, "contacting", etc., another element, it can be directly on, attached to, connected to, coupled with or contacting the other element or intervening elements may also be present. In contrast, when an element is referred to as being, for example, "directly on", "directly attached" to, "directly connected" to, "directly coupled" with or "directly contacting" another element, there are no intervening elements present. It will also be appreciated by those of skill in the art that references to a structure or feature that is disposed "adjacent" another feature may have portions that overlap or underlie the adjacent feature.

[0022] This invention is directed to seating units that have a stationary base, a seat portion, and a backrest. As used herein, the terms "forward", "forwardly", and "front" and derivatives thereof refer to the direction defined by a vector extending from the backrest toward the seat parallel to the underlying surface. Conversely, the terms "rearward", "rearwardly", and derivatives thereof refer to the direction directly opposite the forward direction; the rearward direction is defined by a vector that extends from the seat toward the backrest parallel to the underlying surface. The terms "lateral," "laterally", and derivatives thereof refer to the direction parallel with the floor, perpendicular to the forward and rearward directions, and extending away from a plane bisecting the seating units between their armrests. The terms "medial," "inward," "inboard," and derivatives thereof refer to the direction that is the converse of the lateral direction, i.e., the direction parallel with the floor, perpendicular to the forward direction, and extending from the periphery of the seating units toward the aforementioned bisecting plane.

[0023] The seating units illustrated and described herein comprise a plurality of pivotally interconnected links. Those skilled in this art will appreciate that the pivots between links can take a variety of configurations, such as pivot pins, rivets, bolt and nut combinations, and the like, any of which would be suitable for use with the present invention. Also, the shapes of the links may vary as desired, as may the locations of certain of the pivots. Moreover, in some instances combinations of pivot points may be replaced by equivalent structures, such as "slider-crank" configurations, like those described in B. Paul, Kinematics and Dynamics of Planar Machinery 4-21 (1979). In other embodiments, another mechanism that provides reciprocating

motion along a longitudinal path, such as a rocking unit like that discussed in co-assigned and co-pending U.S. Patent Application Serial No. 12/276,559, the disclosure of which is hereby incorporated herein in its entirety, may also be employed.

[0024] Referring now to the figures, a swiveling glider-recliner chair, designated broadly at **10**, is illustrated in **Figures 1-5**. The chair **10** includes a base unit **11**, a seat **13** that is generally horizontally disposed above the base unit **11**, a backrest **15** that is generally vertically and disposed substantially above a rear portion of the seat **13**, and two ottomans **17a, 17b**, which, in the upright position of **Figure 1**, are generally vertically disposed below a front portion of the seat **13**. Arms **18** are positioned on either side of the seat **13** and move in concert with the seat **13**.

[0025] A pair of mirror image reclining mechanisms **30** (only one of which is shown herein in **Figures 2-4**) are attached to the backrest **15**, the seat **13**, and the ottomans **17a, 17b**. The reclining mechanisms **30**, which comprise a plurality of interconnected links, move the chair **10** between (a) an upright position (**Figures 1 and 2**), in which the seat **13** is generally horizontally disposed, the backrest **15** is generally vertically disposed, and the ottomans **17a, 17b** are generally vertically disposed and positioned below the seat **13**, (b) an intermediate TV position (**Figure 3**), in which the ottomans **17a, 17b** are generally horizontally disposed in front of the seat **13** and the backrest **15** and the seat **13** substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position (**Figure 4**), in which the angle between the backrest **15** and the seat **13** increases. These components are described in greater detail below.

[0026] The base unit **11** includes a circular lower base **12**. A swivel unit **14** is mounted onto the top of the lower base **12**. Cross-members **18** are mounted atop the swivel unit **14**. Those skilled in this art will recognize that the base unit **11** may take other forms that provide mounting locations for the remaining components of the chair **10**; for example, the swivel unit **14** may be omitted.

[0027] Glide foundation plates **24** are mounted to the top surfaces of the cross-members **18**. A front glide link **20** is attached at a pivot **21** to the front end of the glide foundation plate **24**, and a rear glide link **25** is attached at a pivot **26** to the rear end of the glide

foundation plate **24**. The front and rear glide links **20, 25** are suspended from the glide foundation plate **24** and together form a gliding mechanism **28** that provides a gliding motion to the chair **10** when it is in its upright position (**Figure 2**). Those skilled in this art will appreciate that the gliding mechanism may take other forms; it may include glide links of different shapes, or it may include a "track"-based gliding mechanism.

[0028] Because the reclining mechanisms **30** are mirror images of each other, only one reclining mechanism will be described in detail herein, with the understanding that the discussion is equally applicable to the mirror image mechanism **30**. Also, for clarity the mechanism will be described first with reference to **Figure 4** (with the mechanism **30** in its reclined position), then will be described in its upright and TV positions.

[0029] Turning now to **Figure 4**, the reclining mechanism **30** includes a generally arcuate foundation link **31**, which is attached at either end to the front and rear glide links **20, 25** at pivots **22, 27**, respectively. A generally crescent-shaped mounting bracket **32** is fixed to the foundation link **31**. A slot **32a** is present at the front end of the mounting bracket **32**. An L-shaped lower swing link **34** is attached to a lower region of the mounting bracket **32** at a pivot **36** and extends upwardly and rearwardly, then upwardly and forwardly therefrom. A straight upper swing link **38** is attached at its lower end to the upper end of the lower swing link **34** at a pivot **40** and extends upwardly therefrom.

[0030] A backpost **48** is fixed to the backrest **15** and extends generally forwardly from the lower front end of the backrest **15**. The upper swing link **38** is attached to a forward portion of the backpost **48** at a pivot **50**. A straight coupling link **52** having a slot **52a** is attached to the backpost **48** via a pin **48a** located forwardly of the pivot **50**. The coupling link **52** extends forwardly and downwardly from the pin **48a** to attach to the front end of the mounting bracket **32** via a pin **52b** inserted into a slot **32a** in the mounting bracket **32**. A trapezoidal sequencer plate **54** is attached to the backpost **48** at a pivot **58**, and also interacts with the backpost **48** via a slot **54a** that receives a pin **48b**. The sequencer plate **54** is also attached to the rear end of the mounting bracket **32** at a pivot **56**.

[0031] Still referring to **Figure 4**, a seat frame **62**, to which the arms **18** are mounted, underlies the seat **13**. A seat adapter **66** is fixed to the seat frame **62**. The seat adapter **66** is

Attorney Docket No. 4362-138IPCT

attached to the backpost **48** at a pivot **68** that is located just rearward of the pivot **50**. An upper ottoman swing link **72** is attached to a front region of the seat adapter **66** at a pivot **74** and extends downwardly and forwardly therefrom. A tripartite lower ottoman swing link **76** is attached to a pivot **78** that is located rearwardly and downwardly from the pivot **74**; the lower ottoman swing link **76** extends generally forwardly from the pivot **78**. An upper ottoman extension link **80** is attached to the forward end of the lower ottoman swing link **76** at a pivot **82** and extends forwardly and upwardly therefrom. Also the upper ottoman extension link **80** is attached to the upper ottoman swing link at a pivot **84**. A lower ottoman extension link **86** is attached to the forward end of the upper ottoman swing link at a pivot **88** that is positioned above and forward of the pivot **84** and extends upwardly and forwardly therefrom generally parallel with the upper ottoman extension link. An outer ottoman bracket **90** is generally horizontally disposed and is attached to the upper and lower ottoman extension links **80, 86** at pivots **92, 94** respectively. The ottoman **17a** is mounted on the outer ottoman bracket **90**.

[0032] A bi-angled inner ottoman bracket **96** is attached at its lower, forward end to the lower ottoman extension link **86** at a pivot **98**. At its opposite end, the inner ottoman bracket **96** supports the ottoman **17b**. The inner ottoman bracket **96** also includes a slot **96a** that receives a pin **80a** located on the upper ottoman extension link **80**.

[0033] A connecting link **100** is attached to the sequencer plate **54** at a pivot **102**. The connecting link **100** extends forwardly and slightly upwardly from the pivot **102** to a pivot **104** with the lower ottoman swing link **76**.

[0034] A locking mechanism **130** is attached to the reclining mechanism **30** to prevent gliding of the chair **10** when it is in the TV or fully reclined positions. The locking mechanism **130** includes a drive link **132** that is pivotally interconnected at one end to the sequencer plate **54** at a pivot **134**. The drive link **132** is a straight link that slopes downwardly and slightly forwardly from the pivot **134**. The opposite end of the drive link **132** is pivotally interconnected with a downwardly-extending projection **138** of a hook-shaped locking link **136** at a pivot **140**. The locking link **136** is attached to the mounting bracket **32** at the pivot **36**.

[0035] Referring to **Figure 4A**, The chair **10** includes a power unit **112** that drives the chair **10** between its upright, TV and fully reclined positions. The power unit **112** includes a

motor unit **114**, to which is attached a sleeve **116**. The sleeve extends rearwardly from the motor unit **114** and receives a retractable rod **118**. The motor unit **114** is electrically connected with an actuator (not shown), such as a toggle switch or the like, that energizes the motor unit **114** upon actuation.

[0036] The motor unit **114** is attached to an actuating mechanism **113** that includes a mounting bracket **110** at a pivot **120** via a mounting tab **114a** (see **Figure 5**). The mounting bracket **110** is then attached to a cross-member **108** that extends between the reclining mechanisms **30**. A bracket **106** is fixed to each of the lower ottoman swing links **76** and to the cross-member **108**.

[0037] The rod **118** of the power unit **112** is attached to a projecting bracket **46** of the actuating unit **113** (**Figures 4, 4A and 5**) at a pivot **122**. The bracket **46** is then attached to a Z-shaped cross-member **44** that extends between the reclining mechanisms **30**. The cross-member **44** is fixed to a second projecting bracket **42** that is pivotally attached to the lower swing link **34** of each reclining mechanism **30** at a pivot **140**.

[0038] As can be seen in **Figure 2A**, in the upright position, the rod **118** of the power unit **112** is retracted into the sleeve **116**. In this position, the "internal leg" of the Z-shaped cross-member **44** is disposed at an angle α of approximately 45 degrees to horizontal, such that both of the pivots **40, 140** are positioned below the axis **A** defined by the rod **118** of the power unit **112**. The upper segment of the lower swing link **34** is generally parallel with the axis **A**.

[0039] Because the rod **118** is in its retracted position, a pantographic linkage formed by the upper and lower ottoman swing links **72, 76** and the upper and lower ottoman extension links **80, 86** is folded under the seat frame **62**, which positions the ottoman **17b** underneath a forward portion of the seat frame **62** and the ottoman **17a** just forward of and below the seat frame **62** in a vertical orientation. Also, the lower and upper swing links **34, 38** are oriented such that the upper segment of the lower swing link **34** is generally horizontal, which positions the backpost **48** and, in turn, the backrest **15**, in a generally upright position.

[0040] Additionally, the sequencer plate **54** is oriented such that the pivot **102** is located downwardly and rearwardly, such that the locking link **136** of the locking mechanism **130** is raised, with a pocket **137** formed at the vertex of the locking link **136** facing downwardly

and positioned above a post **139** on the rear glide link **25**. In this position, the front and rear glide links **20, 25** are free to swing on the pivots **21, 26**, thereby enabling the reclining mechanisms **30**, the seat **13**, the backrest **15** and the ottomans **17a, 17b** to move fore-and-aft relative to the base unit **11**. During the gliding motion, the majority of the locking mechanism **130** is stationary relative to the reclining mechanisms **30**. Because the locking link **136** does not move relative to the reclining mechanism **30** as the chair **10** glides, it does not interact with the post **139** to impede the gliding motion.

[0041] To move the chair **10** from the upright position to the TV position of **Figure 3**, an occupant of the chair **10** actuates the actuator, which causes the rod **118** to begin to extend from the sleeve **116**. Extension of the rod **118** attempts to force the lower swing link **34** to rotate slightly counterclockwise (from the vantage point of **Figures 2 and 3**) about the pivot **36**. However, the weight of the seated occupant and the geometry of the lower swing link **34**, the upper swing link **38**, and the actuation mechanism **113** prevent any substantial rotation of the lower swing link **34** at this point. Because there is little to no fore-and-aft movement of the rear end of the rod **118**, the motor unit **114** moves forwardly relative to the base unit **11**, thereby driving the lower ottoman swing link **76** counterclockwise about the pivot **78**. Rotation of the lower ottoman swing link **76** forces the upper ottoman extension link **80** forward, which in turn draws the upper ottoman swing link **72** counterclockwise around the pivot **74**. Also, the lower ottoman extension link **86** moves forwardly more than the upper ottoman extension link **80**, such that the outer ottoman bracket **90** and the inner ottoman bracket **96** rotate counterclockwise (rotation of the inner ottoman bracket **96** causes the pin **80a** to move in the slot **96a** toward the pivot **98**). The rotation of the outer and inner ottoman brackets **90, 96** induces the ottomans **17a, 17b** to rotate from a vertical orientation to a horizontal orientation. Motion of the ottomans **17a, 17b** ceases when a pin **72a** on the upper ottoman swing link **72** strikes the upper edge of the upper ottoman extension link **80**.

[0042] In addition, the rotation of the lower ottoman swing link **76** draws the connecting link **100** forward. Movement of the connecting link **100** rotates the sequencer plate **54** counterclockwise about the pivot **58** with the backpost **48**. The drive link **132** of the locking mechanism **130** is driven down and rotates the locking link **136** counterclockwise. The

movement of the locking link **136** ceases when the pocket **137** of the locking link **136** descends sufficiently to receive the post **139** on the rear glide link **25**. In this position, relative movement between the front and rear glide links **20, 25** and the reclining mechanisms is restrained, thereby preventing the reclining mechanisms **30**, and in turn the chair **10**, from gliding relative to the base unit **11**.

[0043] Rotation of the sequencer plate **54** and movement of the connecting link **100** also lower the backpost **48** relative to the base unit **11**, which forces the seat link **64** to increase in pitch angle relative to its underlying surface. The upper swing link **38** rotates counterclockwise about the pivot **48** as a result.

[0044] To move the chair **10** from the TV position of **Figure 3** to the fully reclined position of **Figure 4**, the occupant can continue to operate the actuator, which extends the rod **118** farther out of the sleeve **116**. When the ottomans **17a, 17b** are fully extended, the pivots **82, 84** and **88** are in a near "over-center" condition that helps to lock the ottomans **17a, 17b** in an extended position. Thus, as the rod **118** continues to extend from the sleeve **116** when the chair is in the TV position, the motor unit **114** cannot move forward relative to the base unit **11** any farther, so the rear end of the rod **118** overcomes the resistance provided by the occupant's weight and the geometry of the actuating mechanism **113** and the lower and upper swing links **34, 38** and begins to move rearwardly relative to the base unit **11**, resulting in counterclockwise rotation of the lower swing link **34** about the pivot **36**. This rotation drives the upper swing link **38** clockwise about the pivot **36**. Thus, this action causes the angle β defined by the pivots **36, 40, 50** to increase. The rotation of the upper swing link **38** drives the forward end of the backpost **48** upward. As a consequence, the backpost **48** rotates counterclockwise about the pivot **58** relative to the sequencer plate **54** (and to the seat adapter **66** and the seat frame **62**). Rotation of the backpost **48** and, in turn, the backrest **15**, continues until (a) the pin **48b** on the backpost **48** reaches the upper end of the slot **54a** in the sequencer plate **54** and (b) the pin **52b** of the coupling link **52** reaches the rear end of the slot **32a** of the mounting bracket **32**. In this position, the backrest **15** has reclined relative to the seat **13** at a greater angle than in the upright and TV positions.

[0045] The rotation of the lower swing link **34** and of the coupling link **52** also causes the seat **15** to rise relative to the base unit **11**.

[0046] As can also be seen in **Figure 4**, the locking mechanism **130** continues to prevent the chair **10** from gliding as the chair **10** moves to the fully reclined position. It can also be seen that the seat **13** rises during movement from the TV position to the fully reclined position.

[0047] The chair **10** can be returned to its TV position from the fully reclined position by the occupant operating the actuator in the reverse direction. Because of the over-center condition of the pivots **82, 84, 88**, the ottomans **17a, 17b** remain extended, such that retraction of the rod **118** draws the backrest **15** to its upright position. Once the motion of the backrest **15** is complete, the over-center condition of the pivots **82, 84** and **88** can be overcome, and the ottomans **17a, 17b** are able to retract to the upright position.

[0048] Those skilled in this art will recognize that other variations of the chair **10** are contemplated in connection with the present invention. For example, the power unit **112** may be reversed, such that the motor **114** is at the rear end of the power unit **112** and the rod **118** is at the front end. In such a case, the rod **118** would extend forwardly relative to the base unit **11** as the chair **10** moved from the upright position to the TV position, and the motor **114** would move rearwardly relative to the base unit **11** when the chair moved from the TV position to the fully reclined position. In either instance, the front end of the power unit **112** moves relative to the base unit **11** during the movement from the upright to the TV position, and the rear end of the power unit moves relative to the base unit **11** during the movement from the TV to the fully reclined position.

[0049] The foregoing is illustrative of the present invention and is not to be construed as limiting thereof. Although exemplary embodiments of this invention have been described, those skilled in the art will readily appreciate that many modifications are possible in the exemplary embodiments without materially departing from the novel teachings and advantages of this invention. Accordingly, all such modifications are intended to be included within the scope of this invention as recited in the claims. The invention is defined by the following claims, with equivalents of the claims to be included therein.

That Which is Claimed is:

1. A seating unit, comprising:
 - a base unit with a first bearing surface;
 - a generally horizontally-disposed seat positioned above the base;
 - a generally upright backrest positioned above the base and substantially rearward of the seat;
 - an extendable ottoman;
 - a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
 - a reciprocating mechanism attached to the base unit and the reclining mechanism, the reciprocating mechanism being configured to enable the seat, backrest and reclining mechanism to reciprocate relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and
 - a linear actuating unit attached to the reclining mechanism, the linear actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;
- wherein the linear actuating unit includes opposed first and second ends, and wherein the first end of the linear actuating unit moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the linear actuating unit moves rearwardly when the seating unit moves from the TV position to the fully reclined position.
2. The seating unit defined in Claim 1, wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position.

3. The seating unit defined in Claim 1, further comprising a locking mechanism that allows the seating unit to reciprocate while in the upright position but prevents reciprocating of the seating unit while in the TV and fully reclined positions.

4. The seating unit defined in Claim 1, wherein the linear actuating unit is attached to an actuating mechanism, the actuating mechanism comprising a cross-member extending transversely across the seating unit, wherein the cross-member is pivotally attached to the actuating unit; and wherein the cross-member is pivotally attached to a lower swing link of the reclining mechanism, the lower swing link being pivotally attached to an upper swing link of the reclining mechanism and to a mounting bracket that is attached to the reciprocating mechanism.

5. The seating unit defined in Claim 4, wherein the upper swing link is pivotally attached with the backrest.

6. The seating unit defined in Claim 1, wherein the seat rises in moving from the TV position to the fully reclined position.

7. The seating unit defined in Claim 1, wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the reciprocating mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

8. The seating unit defined in Claim 7, wherein the lower swing link is angled, and wherein a segment of the lower swing link attached to the upper swing link is generally parallel to an axis defined by an extendable member of the linear actuating unit when the seating unit is in the upright and TV positions.

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9. The seating unit defined in Claim 8, wherein a first pivot defined by the cross-member and the lower swing link and a second pivot defined by the lower swing link and the upper swing link are below the axis defined by the extendable member of the actuating unit when the seating unit is in the upright and TV positions.

10. The seating unit defined in Claim 9, wherein the lower swing link is attached to the mounting bracket at a third pivot, and wherein in the upright and TV positions, the first, second and third pivots define a first angle, and in the fully reclined position, the first, second and third pivots define a second angle that is larger than the first angle.

11. The seating unit defined in Claim 1, wherein the reciprocating mechanism is a gliding mechanism.

RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

Abstract of the Disclosure

A reciprocating and reclining seating unit includes: a base unit with a first bearing surface; a generally horizontally-disposed seat positioned above the base; a generally upright backrest positioned above the base and substantially rearward of the seat; an extendable ottoman; a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links; a reciprocating mechanism attached to the base unit and the reclining mechanism, the reciprocating mechanism being configured to enable the seat, backrest and reclining mechanism to reciprocate relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and a power actuating unit attached to the reclining mechanism, the actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases. The actuating unit is attached to an actuating mechanism, the actuating mechanism comprising a cross-member extending transversely across the seating unit and first and second projections fixed to the cross-member. The first projection is pivotally attached to the actuating unit. The second projection is pivotally attached to a lower swing link of the reclining mechanism, the lower swing link being pivotally attached to an upper swing link of the reclining mechanism and to a mounting bracket that is attached to the reciprocating mechanism.

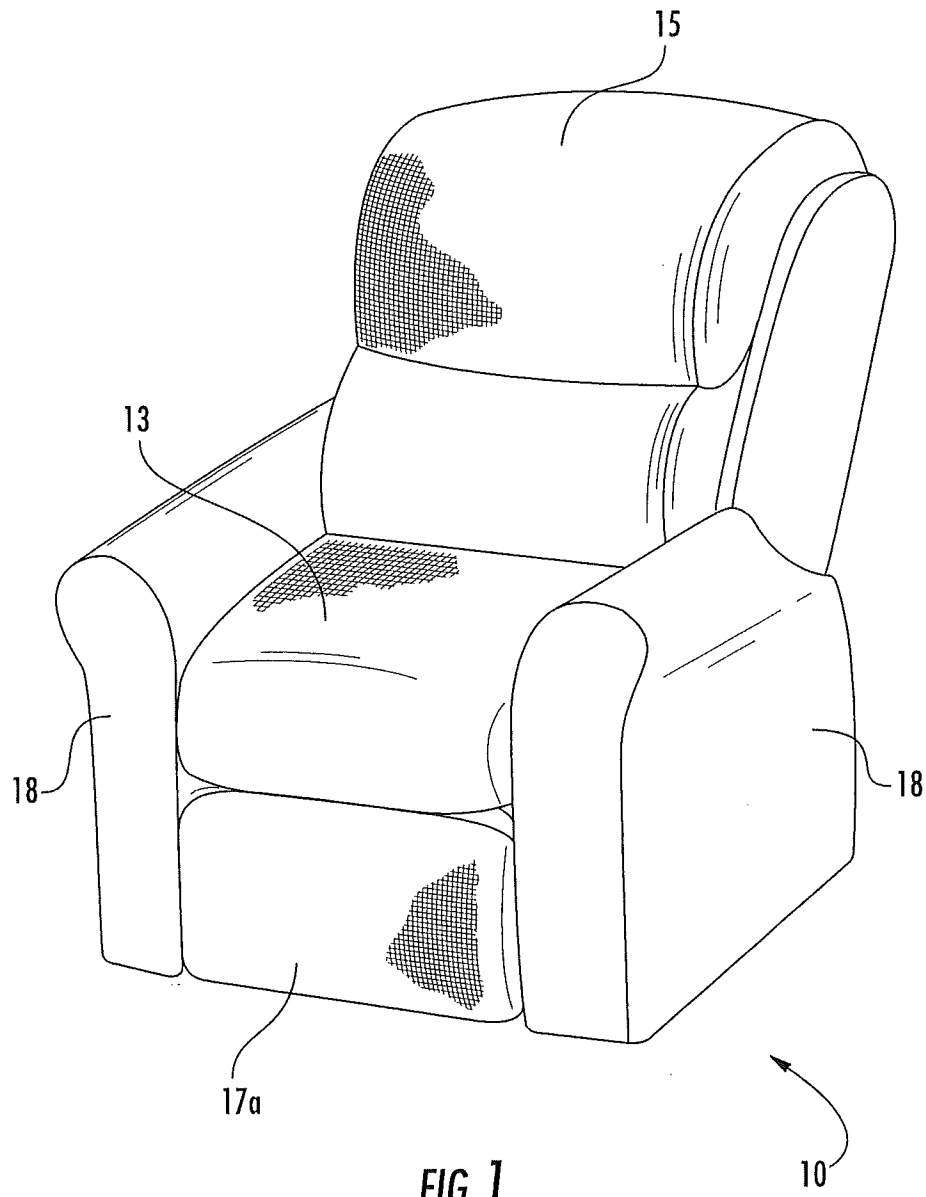


FIG. 1

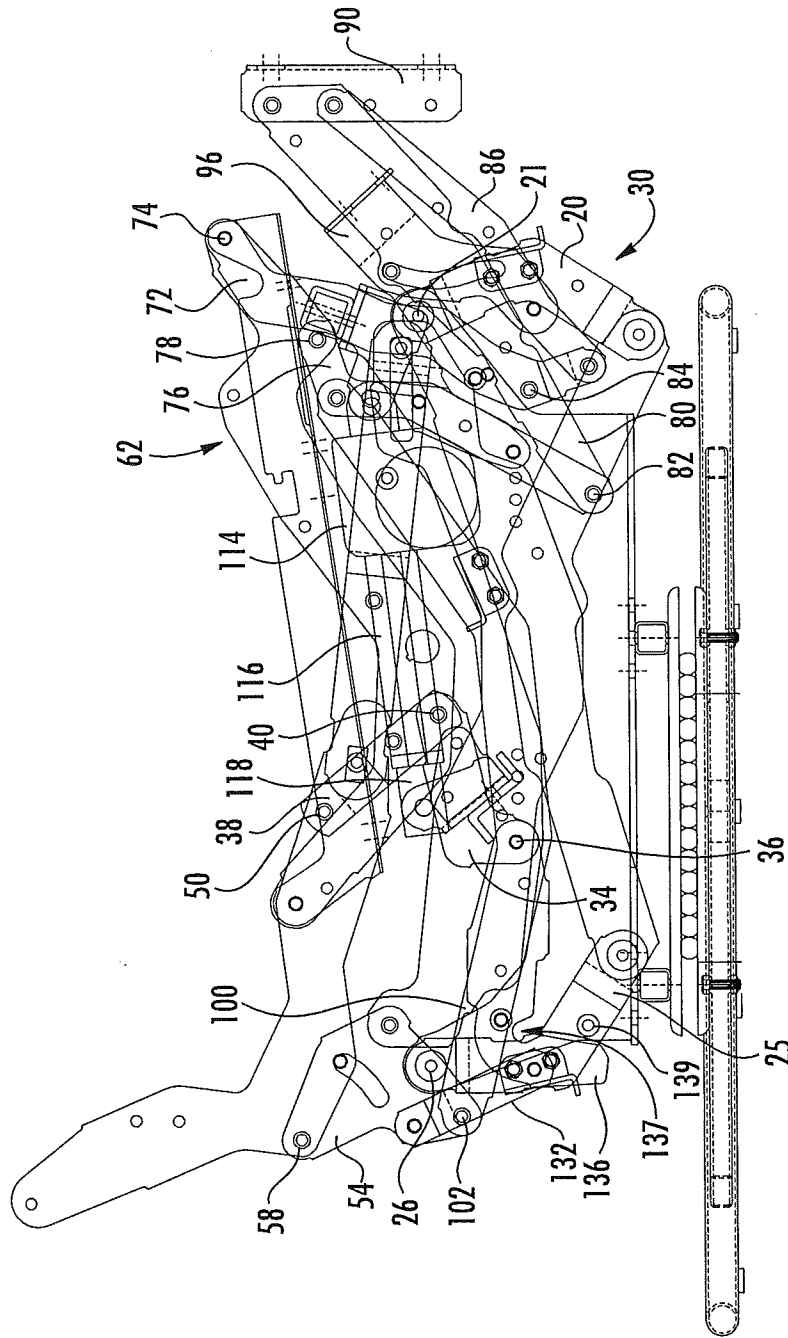
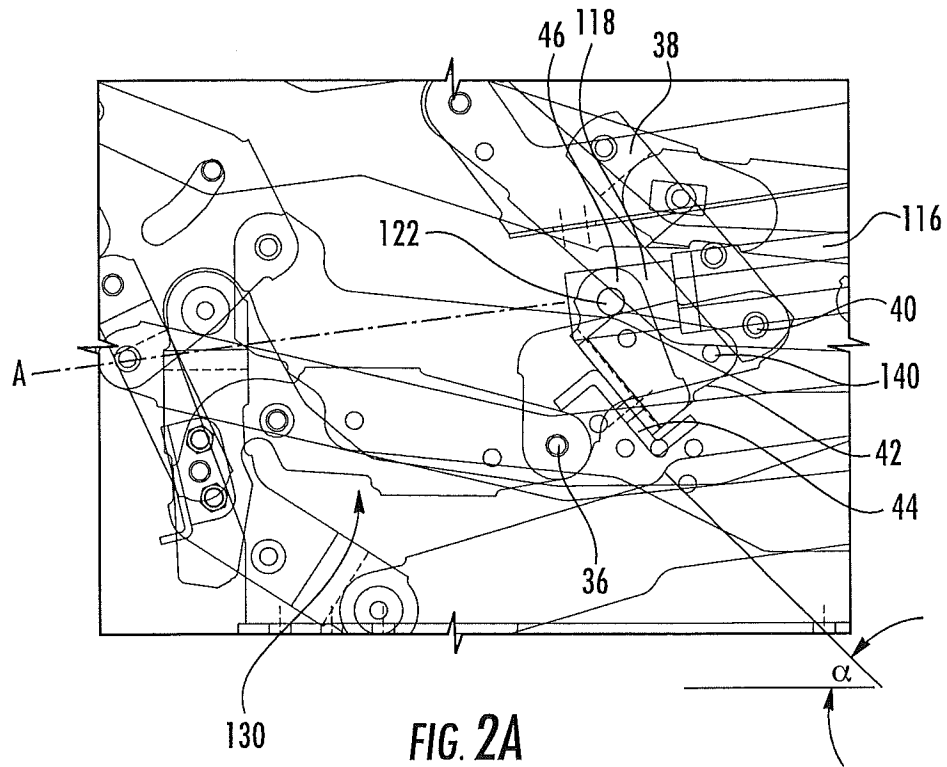
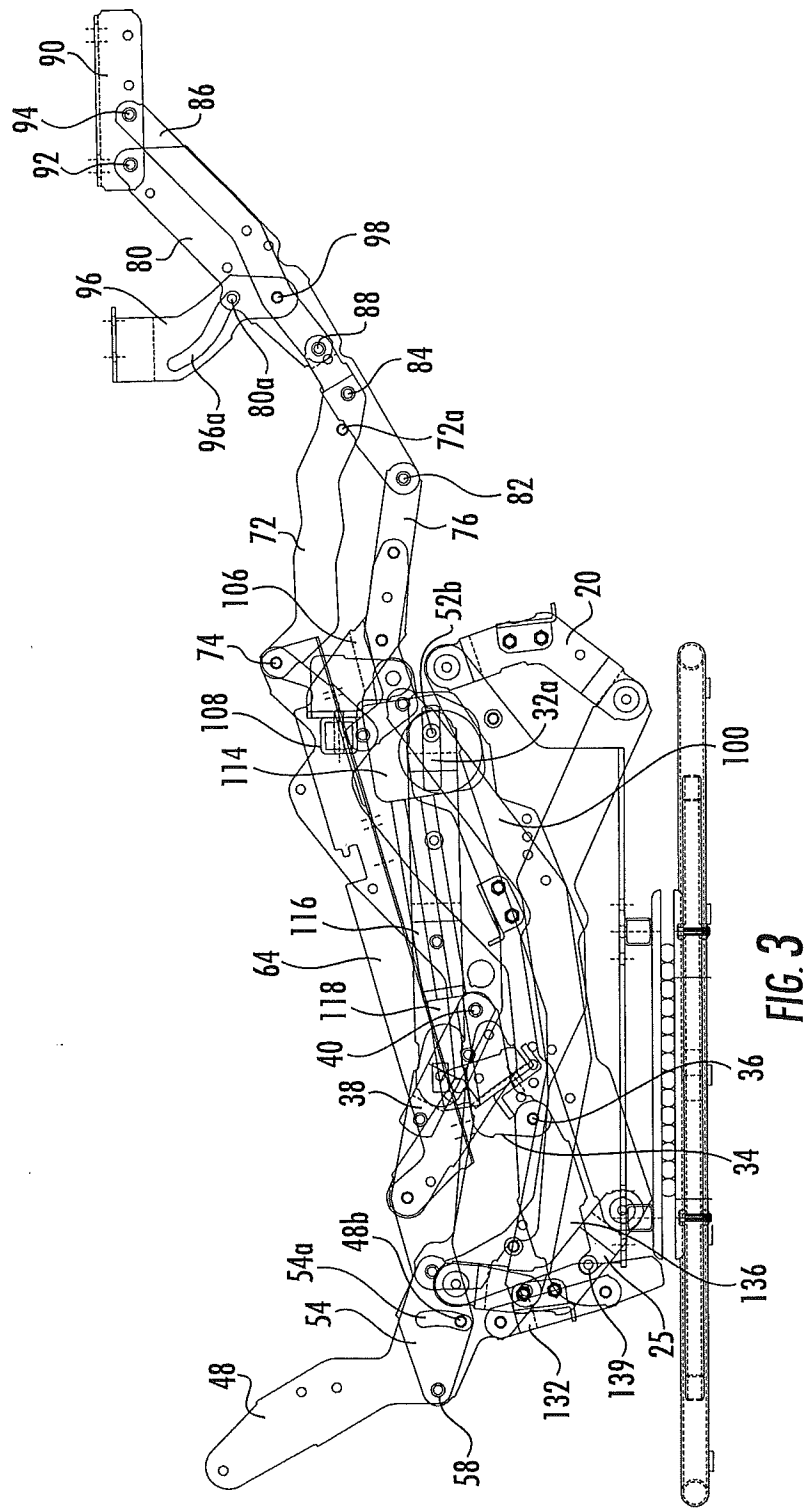


FIG. 2





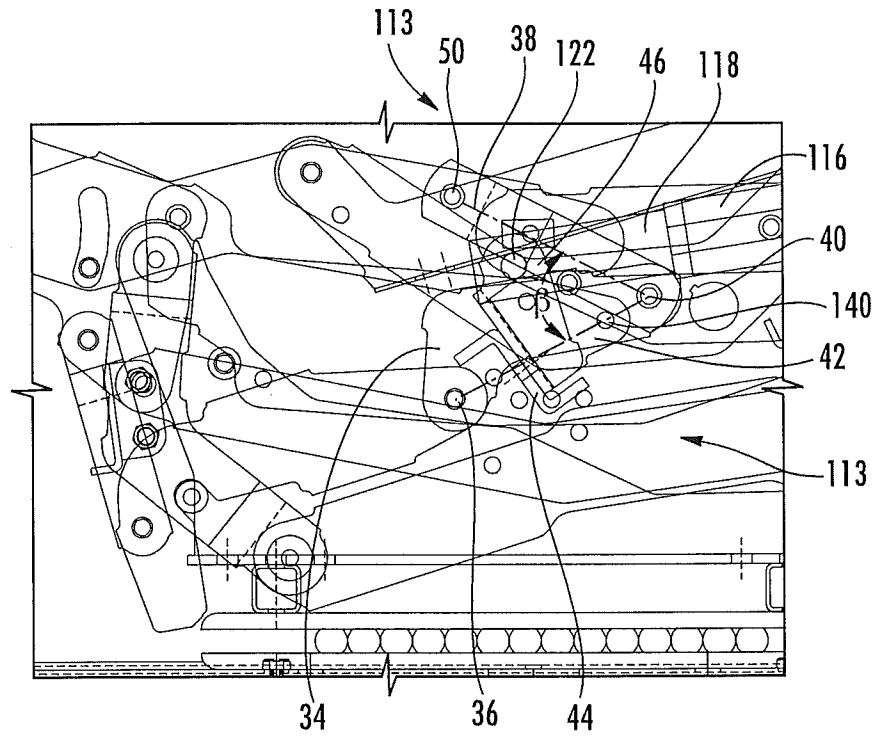
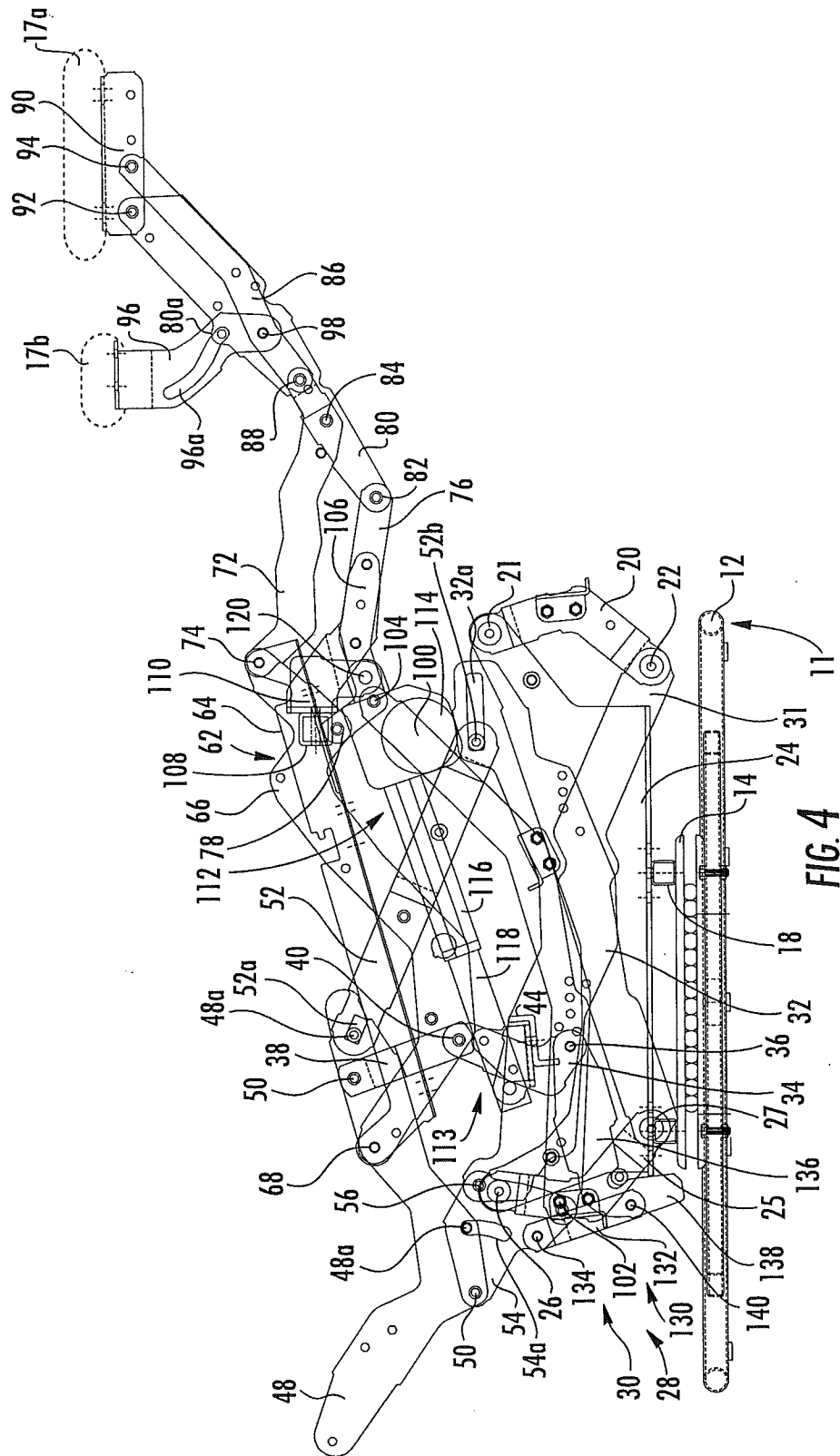


FIG. 3A



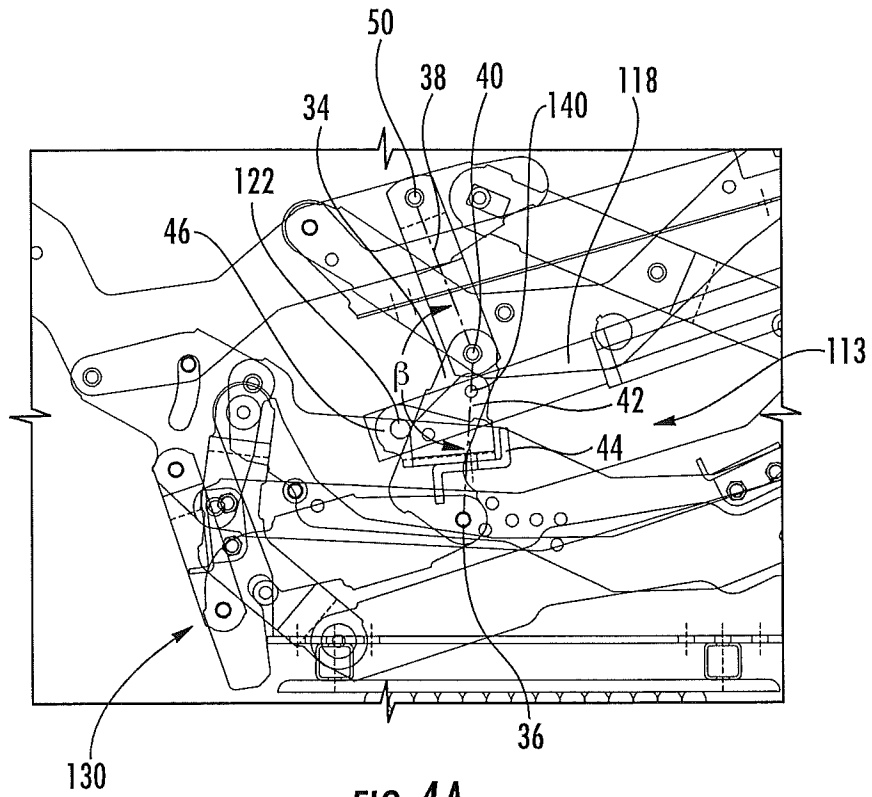


FIG. 4A

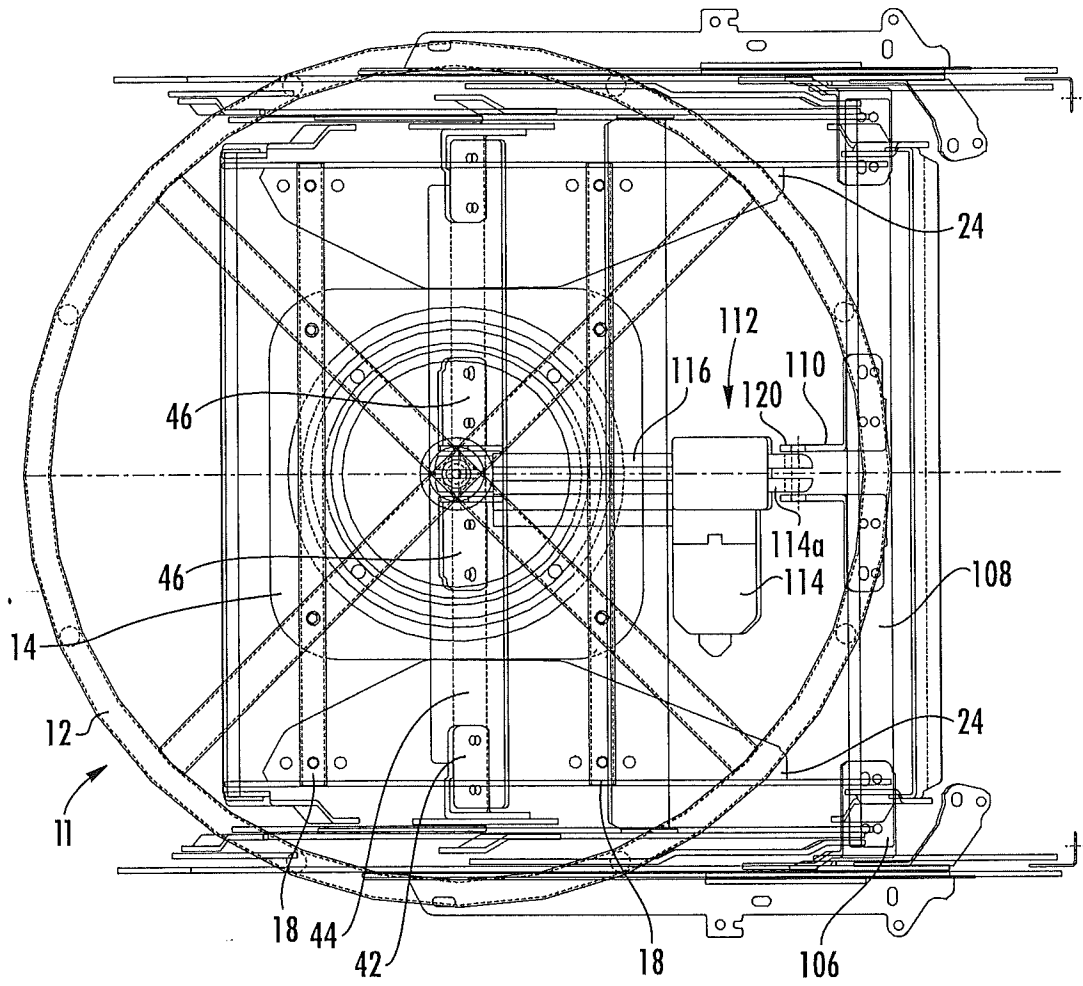


FIG. 5

DECLARATION AND POWER OF ATTORNEY FOR PATENT APPLICATION

As a below named inventor, I hereby declare that:

My residence, post office address and citizenship are as stated below next to my name.

I believe I am an original, first and joint inventor of the subject matter which is claimed and for which a patent is sought on the invention entitled **RECIPROCATING SEATING UNIT WITH POWER ACTUATOR**

the specification of which

☐ is attached hereto

OR

☒ was filed on July 24, 2009 as United States Application No. 12/508,901 or PCT International Application Number _____ and was amended on _____ (if applicable).

I hereby state that I have reviewed and understand the contents of the above identified specification, including the claims, as amended by any amendment specifically referred to above.

I acknowledge the duty to disclose information which is material to patentability as defined in 37 C.F.R. 1.56, including for continuation-in-part applications, material information which became available between the filing date of the prior application and the national or PCT international filing date of the continuation-in-part application.

I hereby claim foreign priority benefits under 35 U.S.C. 119(a)-(d) or (f), or 365(b) of any foreign application(s) for patent, inventor's or plant breeder's rights certificate(s), or 365(a) of any PCT international application which designated at least one country other than the United States of America, listed below and have also identified below, by checking the box, any foreign application for patent, inventor's or plant breeder's rights certificate(s), or any PCT international application having a filing date before that of the application on which priority is claimed.

			☐ Yes ☐ No
Number	Country	MM/DD/YYYY Filed	Priority Claimed
			☐ Yes ☐ No
Number	Country	MM/DD/YYYY Filed	Priority Claimed

I hereby declare that all statements made herein of my own knowledge are true and that all statements made on information and belief are believed to be true; and further that these statements were made with the knowledge that willful false statements and the like so made are punishable by fine or imprisonment, or both, under 18 U.S.C. 1001 and that such willful false statements may jeopardize the validity of the application or any patent issued thereon.

POWER OF ATTORNEY: As a named inventor, I hereby appoint the following registered attorney(s) to prosecute this application and transact all business in the Patent and Trademark Office connected therewith. I also appoint the following registered attorney(s) to represent me before all competent International Authorities in connection with any and all international applications filed by me with an appropriate receiving office claiming priority to the U.S. application. I also appoint the following registered attorney(s) to make or receive payment on my behalf in connection with the filing of such international applications.

Customer No. 20792

Myers Bigel Sibley & Sajovec, P.A.
P. O. Box 37428
Raleigh, North Carolina 27627
Telephone: (919) 854-1400
Facsimile: (919) 854-1401

Send correspondence to:

Customer No. 20792

James R. Cannon
Myers Bigel Sibley & Sajovec, P.A.
P. O. Box 37428
Raleigh, North Carolina 27627
Telephone: (919) 854-1400
Facsimile: (919) 854-1401

Direct telephone calls to:

James R. Cannon
(919) 854-1400

Facsimile:

(919) 854-1401

Full name of first inventor: **D. Stephen Hoffman**

Inventor's

Signature:

 Date: 8.28.2009

Residence:

High Point, North Carolina

Citizenship:

the United States of America

Mailing Address:

222 Cascade Drive, High Point, North Carolina

Full name of second inventor: **Marcus L. Murphy**

Inventor's
Signature: Marcus L. Murphy Date: 8.28.2009

Residence: Lexington, North Carolina

Citizenship: the United States of America

Mailing Address: 230 Lowe Drive, Lexington, North Carolina

Attorney Docket No. 4362-138IPCT

PATENT

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman

Application No.: not yet assigned

Filing Date: September 9, 2011

For: RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

Date: September 9, 2011

Commissioner for Patents

Box 1450

Alexandria, VA 22313-1450

INFORMATION DISCLOSURE STATEMENT TRANSMITTAL

Sir:

Attached is an Information Disclosure Statement listing of documents previously of record in parent Application No. 12/508,901, filed July 24, 2009. As the benefit of this application is claimed under 35 U.S.C. § 120, no copies need to be furnished in accordance with 37 C.F.R. § 1.98(d); however, copies will be furnished on request.

☒ In accordance with **37 CFR 1.97(b)**, the information disclosure statement is being filed:

- ☐ (1) within three months of the filing date of a national application other than a continued prosecution application under §1.53(d);
- ☐ (2) within three months of the date of entry of the national stage as set forth in §1.491 in an international application;
- ☒ (3) before the mailing of a first Office Action on the merits; or
- ☐ (4) before the mailing of a first Office Action after the filing of a request for continued examination under §1.114.

☐ In accordance with **37 CFR 1.97(c)**, the information disclosure statement is being filed after the period specified in 37 CFR 1.97(b) above, but before the mailing date of any of a final action under §1.113, a notice of allowance under §1.311, or an action that otherwise closes prosecution in the application, and is accompanied by one of the following:

☐ (1) The statement specified under **37 CFR 1.97(e)**, as follows:

☐ Each item of information contained in the information disclosure statement was first cited in any communication from a foreign patent office in a counterpart foreign application not more than three months prior to the filing of the information disclosure statement; or

☐ No item of information contained in the information disclosure statement was cited in a communication from a foreign patent office in a counterpart foreign application, and, to the knowledge of the person signing the certification after making reasonable inquiry, no item of information contained in the information disclosure statement was known to any individual designated in §1.56(c) more than three months prior to the filing of the information disclosure statement; or

☐ (2) The fee set forth in §1.17(p);

☐ In accordance with **37 CFR 1.97(d)**, the information disclosure statement is being filed after the period specified in 37 CFR 1.97(c) above, but on or before payment of the issue fee, and is accompanied by **both** of the following:

☐ (1) The statement specified under **37 CFR 1.97(e)**, as follows:

☐ That each item of information contained in the information disclosure statement was first cited in any communication from a foreign patent office in a counterpart foreign application not more than three months prior to the filing of the information disclosure statement; **or**

☐ That no item of information contained in the information disclosure statement was cited in a communication from a foreign patent office in a counterpart foreign application, and, to the knowledge of the person signing the certification after making reasonable inquiry, no item of information contained in the information disclosure statement was known to any individual designated in §1.56(c) more than three months prior to the filing of the information disclosure statement; **and**

☐ (2) The fee set forth in §1.17(p);

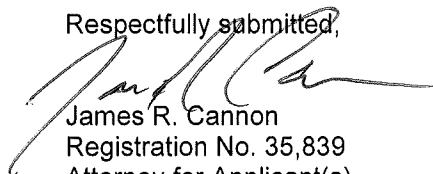
In accordance with **37 CFR 1.97(g)**, the information disclosure statement shall not be construed as a representation that a search has been made.

In accordance with **37 CFR 1.97(h)**, the information disclosure statement shall not be construed to be an admission that the information cited in the statement is, or is considered to be, material to patentability as defined in §1.56(b).

☐ The Director is hereby authorized to charge the fee specified in 37 C.F.R. § 1.17(p), and any fee deficiency or credit any overpayment, to Deposit Account No. 50-0220; **or**

☒ No fee is believed due. However, the Director is hereby authorized to charge any deficiency or credit any overpayment to Deposit Account No. 50-0220.

Respectfully submitted,

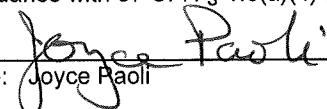

James R. Cannon
Registration No. 35,839
Attorney for Applicant(s)

Customer Number 20792

Myers Bigel Sibley & Sajovec, P.A.
P.O. Box 37428, Raleigh, NC 27627
919-854-1400
919-854-1401 (Fax)

CERTIFICATION OF TRANSMISSION

I hereby certify that this correspondence is being transmitted via the Office electronic filing system in accordance with 37 CFR § 1.6(a)(4) to the U.S. Patent and Trademark Office on September 9, 2011.


Name: Joyce Paoli

11/10/2009		Complete if Known	
INFORMATION DISCLOSURE STATEMENT BY APPLICANT (use as many sheets as necessary)		Application Number	Not yet assigned
		Filing Date	September 9, 2011
		First Named Inventor	D. Stephen Hoffman
		Art Unit	TBA
		Examiner Name	TBA
Sheet	A1	of	A2
		Attorney Docket Number	4362-138IPCT

U.S. PATENT DOCUMENTS AND APPLICATIONS						
Examin er Initials*	Cite No.	Document Number		Publication Date MM-DD- YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear
		Number-Kind Code (if known)				
	1.	US-	7,311,359 B2	12-25-2007	Smith	
	2.	US-	7,293,834 B2	11-13-2007	Riach et al.	
	3.	US-	7,188,904 B2	03-13-2007	Bruck et al.	
	4.	US-	7,083,235 B2	08-01-2006	Grimm et al.	
	5.	US-	7,040,692 B1	05-2006	Pine, James J.	
	6.	US-	7,021,711 B1	04-04-2006	Hoffman et al.	
	7.	US-	6,948,777 B2	09-27-2005	Marshall et al.	
	8.	US-	6,945,599	09-2005	May	
	9.	US-	6,733,071	05-2004	Guillot	
	10.	US-	6,634,706	10-2003	May	
	11.	US-	6,612,650 B1	09-02-2003	Ambrosio et al.	
	12.	US-	6,540,291	04-01-2003	Hoffman et al.	
	13.	US-	6,491,342 B1	12-10-2002	Smith	
	14.	US-	6,231,120	05-2001	Wiecek	
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	37.	US-	4,307,912	12-29-1981	Watt et al.	
	38.	US-	3,863,980	02-04-1975	Ciner	

Examiner Signature		Date Considered	
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* EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

11/10/2009		Complete if Known	
INFORMATION DISCLOSURE STATEMENT BY APPLICANT (use as many sheets as necessary)		Application Number	Not yet assigned
		Filing Date	September 9, 2011
		First Named Inventor	D. Stephen Hoffman
		Art Unit	TBA
		Examiner Name	TBA
Sheet	A2	of	A2
		Attorney Docket Number	4362-138IPCT

	39.	US-	3,637,255	01-1972	Re, Frank M.	
	40.	US-	3,622,202	11-23-1971	Brown	
	41.	US-	3,622,198	11-1971	Re, Frank M.	
	42.	US-	3,493,264	02-1970	Re, Frank M.	
	43.	US-	3,383,135	05-14-1968	Posh	
	44.	US-	3,352,601	11-1967	Izchak Cycowicz	
	45.	US-	3,279,847	10-1966	Re	
	46.	US-	3,163,464	12-1964	Martin Leonard L	
	47.	US-	3,147,038	09-01-1964	Barabas	
	48.	US-	2,714,922	08-09-1955	McKibban et al.	
	49.	US-	2,526,623 A	10-24-1950	Maurer	
	50.	US-	0,507,270 A	10-24-1893	Name Not Available	
	51.	US-	2006/0082195 A1	04-20-2006	Jiang	

FOREIGN PATENT DOCUMENTS						
Examiner Initials*	Cite No.	Foreign Patent Document Country Code, Number, Kind Code (if known)	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear	T
	52.	GB 2 106 777 A	04-20-1983	Stella-Mobelwerk GmbH (DE)		Abstract

NON PATENT LITERATURE DOCUMENTS			
Examiner Initials*	Cite No.	Include name of the author (in CAPITAL LETTERS), title of the article (when appropriate), title of the item (book, magazine, journal, serial, symposium, catalog, etc.), date, page(s), volume-issue number(s), publisher, city and/or country where published	T
	53.	Lusch Brochure: "Functional Fitting and Tubular steel frames for Relaxing Chairs (11 pages), Functional Fittings for Sofabeds and Beds (10 pages), Bed Fitting (5 pages) and Upholstery joints and accessories for furniture (9 pages)", (available before April 7, 2006).	Yes
	54.	"Stawett Functional Bed Mechanisms Brochure", pp. 3-93 (2001).	Yes

Examiner Signature		Date Considered	
--------------------	--	-----------------	--

*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

Electronic Patent Application Fee Transmittal

Application Number:

Filing Date:

Title of Invention:

Reciprocating Seating Unit with Power Actuator

First Named Inventor/Applicant Name:

D. Stephen Hoffman

Filer:

James R. Cannon/Joyce Paoli

Attorney Docket Number:

4362-138IPCT

Filed as Small Entity

Utility under 35 USC 111(a) Filing Fees

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Utility filing Fee (Electronic filing)	4011	1	82	82
Utility Search Fee	2111	1	270	270
Utility Examination Fee	2311	1	110	110

Pages:

Claims:

Miscellaneous-Filing:

Petition:

Patent-Appeals-and-Interference:

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Post-Allowance-and-Post-Issuance:				
Extension-of-Time:				
Miscellaneous:				
Total in USD (\$)				462

Electronic Acknowledgement Receipt

EFS ID:	10913159
Application Number:	13228746
International Application Number:	
Confirmation Number:	8133
Title of Invention:	Reciprocating Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Paoli
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138IPCT
Receipt Date:	09-SEP-2011
Filing Date:	
Time Stamp:	13:36:56
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Deposit Account
Payment was successfully received in RAM	\$462
RAM confirmation Number	10478
Deposit Account	500220
Authorized User	

The Director of the USPTO is hereby authorized to charge indicated fees and credit any overpayment as follows:
Charge any Additional Fees required under 37 C.F.R. Section 1.17 (Patent application and reexamination processing fees)

File Listing:					
Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1		4362-138IPCT.pdf	2137005	yes	19
			81b49b2a9af2e8b21804f6d5a8ad08b07a7ae45b		
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Transmittal of New Application		1	2	
	Specification		3	15	
	Claims		16	18	
	Abstract		19	19	
Warnings:					
Information:					
2	Drawings-only black and white line drawings	4362-138IPCT-drawings.pdf	486349	no	8
			f871e5211805a42f61f16d52925c9227ac1b18d1		
Warnings:					
Information:					
3	Oath or Declaration filed	4362-138IPCT-declaration.pdf	230594	no	4
			740be883a94a35ded3bca5013b214ae081c662f3		
Warnings:					
Information:					
4		20110909133144376.pdf	486816	yes	4
			b0fe342a2071199ccfb149c9e941c86924d500eb		
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Transmittal Letter		1	2	
	Information Disclosure Statement (IDS) Form (SB08)		3	4	
Warnings:					
Information:					
5	Fee Worksheet (SB06)	fee-info.pdf	32761	no	2
			7504845fd45c809adae09776184a04b288acd558		
Warnings:					

Information:	
Total Files Size (in bytes):	3373525
This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503. <u>New Applications Under 35 U.S.C. 111</u> If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application. <u>National Stage of an International Application under 35 U.S.C. 371</u> If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course. <u>New International Application Filed with the USPTO as a Receiving Office</u> If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.	

Electronic Acknowledgement Receipt

EFS ID:	10913159
Application Number:	13228746
International Application Number:	
Confirmation Number:	8133
Title of Invention:	Reciprocating Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Paoli
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138IPCT
Receipt Date:	09-SEP-2011
Filing Date:	
Time Stamp:	13:36:56
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Deposit Account
Payment was successfully received in RAM	\$462
RAM confirmation Number	10478
Deposit Account	500220
Authorized User	

The Director of the USPTO is hereby authorized to charge indicated fees and credit any overpayment as follows:
Charge any Additional Fees required under 37 C.F.R. Section 1.17 (Patent application and reexamination processing fees)

File Listing:					
Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1		4362-138IPCT.pdf	2137005	yes	19
			81b49b2a9af2e8b21804f6d5a8ad08b07a7ae45b		
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Transmittal of New Application		1	2	
	Specification		3	15	
	Claims		16	18	
	Abstract		19	19	
Warnings:					
Information:					
2	Drawings-only black and white line drawings	4362-138IPCT-drawings.pdf	486349	no	8
			f871e5211805a42f61f16d52925c9227ac1b18d1		
Warnings:					
Information:					
3	Oath or Declaration filed	4362-138IPCT-declaration.pdf	230594	no	4
			740be883a94a35ded3bca5013b214ae081c662f3		
Warnings:					
Information:					
4		20110909133144376.pdf	486816	yes	4
			b0fe342a2071199ccfb149c9e941c86924d500eb		
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Transmittal Letter		1	2	
	Information Disclosure Statement (IDS) Form (SB08)		3	4	
Warnings:					
Information:					
5	Fee Worksheet (SB06)	fee-info.pdf	32761	no	2
			7504845fd45c809adae09776184a04b288acd558		
Warnings:					

Information:	
Total Files Size (in bytes):	3373525
This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503. <u>New Applications Under 35 U.S.C. 111</u> If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application. <u>National Stage of an International Application under 35 U.S.C. 371</u> If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course. <u>New International Application Filed with the USPTO as a Receiving Office</u> If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.	



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APPLICATION NUMBER	FILING or 371(c) DATE	GRP ART UNIT	FIL FEE REC'D	ATTY. DOCKET NO	TOT CLAIMS	IND CLAIMS
13/228,746	09/09/2011	3636	462	4362-138IPCT	11	1

CONFIRMATION NO. 8133

20792
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

FILING RECEIPT



OC000000049935780

Date Mailed: 09/26/2011

Receipt is acknowledged of this non-provisional patent application. The application will be taken up for examination in due course. Applicant will be notified as to the results of the examination. Any correspondence concerning the application must include the following identification information: the U.S. APPLICATION NUMBER, FILING DATE, NAME OF APPLICANT, and TITLE OF INVENTION. Fees transmitted by check or draft are subject to collection. Please verify the accuracy of the data presented on this receipt. **If an error is noted on this Filing Receipt, please submit a written request for a Filing Receipt Correction. Please provide a copy of this Filing Receipt with the changes noted thereon. If you received a "Notice to File Missing Parts" for this application, please submit any corrections to this Filing Receipt with your reply to the Notice. When the USPTO processes the reply to the Notice, the USPTO will generate another Filing Receipt incorporating the requested corrections**

Applicant(s)

D. Stephen Hoffman, High Point, NC;
Marcus L. Murphy, Lexington, NC;

Power of Attorney: The patent practitioners associated with Customer Number 20792

Domestic Priority data as claimed by applicant

This application is a CON of 12/508,901 07/24/2009 PAT 8,016,348
which is a CIP of 12/276,567 11/24/2008 PAT 7,997,644

Foreign Applications (You may be eligible to benefit from the **Patent Prosecution Highway** program at the USPTO. Please see <http://www.uspto.gov> for more information.)

If Required, Foreign Filing License Granted: 09/20/2011

The country code and number of your priority application, to be used for filing abroad under the Paris Convention, is **US 13/228,746**

Projected Publication Date: To Be Determined - pending completion of Corrected Papers

Non-Publication Request: No

Early Publication Request: No

**** SMALL ENTITY ****

Title

Reciprocating Seating Unit with Power Actuator

Preliminary Class

297

PROTECTING YOUR INVENTION OUTSIDE THE UNITED STATES

Since the rights granted by a U.S. patent extend only throughout the territory of the United States and have no effect in a foreign country, an inventor who wishes patent protection in another country must apply for a patent in a specific country or in regional patent offices. Applicants may wish to consider the filing of an international application under the Patent Cooperation Treaty (PCT). An international (PCT) application generally has the same effect as a regular national patent application in each PCT-member country. The PCT process **simplifies** the filing of patent applications on the same invention in member countries, but **does not result** in a grant of "an international patent" and does not eliminate the need of applicants to file additional documents and fees in countries where patent protection is desired.

Almost every country has its own patent law, and a person desiring a patent in a particular country must make an application for patent in that country in accordance with its particular laws. Since the laws of many countries differ in various respects from the patent law of the United States, applicants are advised to seek guidance from specific foreign countries to ensure that patent rights are not lost prematurely.

Applicants also are advised that in the case of inventions made in the United States, the Director of the USPTO must issue a license before applicants can apply for a patent in a foreign country. The filing of a U.S. patent application serves as a request for a foreign filing license. The application's filing receipt contains further information and guidance as to the status of applicant's license for foreign filing.

Applicants may wish to consult the USPTO booklet, "General Information Concerning Patents" (specifically, the section entitled "Treaties and Foreign Patents") for more information on timeframes and deadlines for filing foreign patent applications. The guide is available either by contacting the USPTO Contact Center at 800-786-9199, or it can be viewed on the USPTO website at <http://www.uspto.gov/web/offices/pac/doc/general/index.html>.

For information on preventing theft of your intellectual property (patents, trademarks and copyrights), you may wish to consult the U.S. Government website, <http://www.stopfakes.gov>. Part of a Department of Commerce initiative, this website includes self-help "toolkits" giving innovators guidance on how to protect intellectual property in specific countries such as China, Korea and Mexico. For questions regarding patent enforcement issues, applicants may call the U.S. Government hotline at 1-866-999-HALT (1-866-999-4158).

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The applicant has been granted a license under 35 U.S.C. 184, if the phrase "IF REQUIRED, FOREIGN FILING LICENSE GRANTED" followed by a date appears on this form. Such licenses are issued in all applications where the conditions for issuance of a license have been met, regardless of whether or not a license may be required as

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No license under 35 U.S.C. 184 has been granted at this time, if the phrase "IF REQUIRED, FOREIGN FILING LICENSE GRANTED" DOES NOT appear on this form. Applicant may still petition for a license under 37 CFR 5.12, if a license is desired before the expiration of 6 months from the filing date of the application. If 6 months has lapsed from the filing date of this application and the licensee has not received any indication of a secrecy order under 35 U.S.C. 181, the licensee may foreign file the application pursuant to 37 CFR 5.15(b).

PATENT APPLICATION FEE DETERMINATION RECORD

Substitute for Form PTO-875

Application or Docket Number
13/228,746

APPLICATION AS FILED - PART I

(Column 1)		(Column 2)	SMALL ENTITY		OR	OTHER THAN SMALL ENTITY	
FOR	NUMBER FILED	NUMBER EXTRA	RATE(\$)	FEE(\$)		RATE(\$)	FEE(\$)
BASIC FEE (37 CFR 1.16(a), (b), or (c))	N/A	N/A	N/A	82		N/A	
SEARCH FEE (37 CFR 1.16(k), (l), or (m))	N/A	N/A	N/A	270		N/A	
EXAMINATION FEE (37 CFR 1.16(o), (p), or (q))	N/A	N/A	N/A	110		N/A	
TOTAL CLAIMS (37 CFR 1.16(j))	11	minus 20 = *	x 26 =	0.00	OR		
INDEPENDENT CLAIMS (37 CFR 1.16(h))	1	minus 3 = *	x 110 =	0.00			
APPLICATION SIZE FEE (37 CFR 1.16(s))	If the specification and drawings exceed 100 sheets of paper, the application size fee due is \$310 (\$155 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR 1.16(s).			0.00			
MULTIPLE DEPENDENT CLAIM PRESENT (37 CFR 1.16(j))				0.00			
			TOTAL	462		TOTAL	

* If the difference in column 1 is less than zero, enter "0" in column 2.

APPLICATION AS AMENDED - PART II

		(Column 1)		(Column 2)	(Column 3)	SMALL ENTITY		OR	OTHER THAN SMALL ENTITY	
AMENDMENT A		CLAIMS REMAINING AFTER AMENDMENT		HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE(\$)	ADDITIONAL FEE(\$)		RATE(\$)	ADDITIONAL FEE(\$)
	Total (37 CFR 1.16(i))	*	Minus	**	=	x	=	OR	x	=
	Independent (37 CFR 1.16(h))	*	Minus	***	=	x	=	OR	x	=
	Application Size Fee (37 CFR 1.16(s))							OR		
	FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))							OR		
						TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE	

		(Column 1)		(Column 2)	(Column 3)	SMALL ENTITY		OR	OTHER THAN SMALL ENTITY	
AMENDMENT B		CLAIMS REMAINING AFTER AMENDMENT		HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE(\$)	ADDITIONAL FEE(\$)		RATE(\$)	ADDITIONAL FEE(\$)
	Total (37 CFR 1.16(i))	*	Minus	**	=	x	=	OR	x	=
	Independent (37 CFR 1.16(h))	*	Minus	***	=	x	=	OR	x	=
	Application Size Fee (37 CFR 1.16(s))							OR		
	FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))							OR		
						TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE	

* If the entry in column 1 is less than the entry in column 2, write "0" in column 3.

** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 20, enter "20".

*** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 3, enter "3".

The "Highest Number Previously Paid For" (Total or Independent) is the highest found in the appropriate box in column 1.



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APPLICATION NUMBER	FILING OR 371(C) DATE	FIRST NAMED APPLICANT	ATTY. DOCKET NO./TITLE
13/228,746	09/09/2011	D. Stephen Hoffman	4362-138IPCT

CONFIRMATION NO. 8133

FORMALITIES LETTER



OC000000049935781

20792
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

Date Mailed: 09/26/2011

NOTICE TO FILE CORRECTED APPLICATION PAPERS

Filing Date Granted

An application number and filing date have been accorded to this application. The application is informal since it does not comply with the regulations for the reason(s) indicated below. Applicant is given TWO MONTHS from the date of this Notice within which to correct the informalities indicated below. Extensions of time may be obtained by filing a petition accompanied by the extension fee under the provisions of 37 CFR 1.136(a).

The required item(s) identified below must be timely submitted to avoid abandonment:

- A replacement abstract not exceeding 150 words in length and commencing on a separate sheet in compliance with 37 CFR 1.72(b) and 37 CFR 1.121 is required.

Applicant is cautioned that correction of the above items may cause the specification and drawings page count to exceed 100 pages. If the specification and drawings exceed 100 pages, applicant will need to submit the required application size fee.

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<https://sportal.uspto.gov/authenticate/AuthenticateUserLocalEPF.html>

For more information about EFS-Web please call the USPTO Electronic Business Center at **1-866-217-9197** or visit our website at <http://www.uspto.gov/ebc>.

If you are not using EFS-Web to submit your reply, you must include a copy of this notice.

/tlulu/

Attorney Docket No. 4362-138IPCT

PATENT

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman

Confirmation No. 8133

Application No.: 13/228,746

Group Art Unit: 3636

Filed: September 9, 2011

Examiner: TBA

Title: RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

Date: October 7, 2011

Mail Stop Missing Parts
Commissioner for Patents
PO Box 1450
Alexandria, VA 22313-1450

AMENDMENT AND RESPONSE

Sir:

This is responsive to the Notice to File Corrected Application Papers mailed September 26, 2011 regarding the above-referenced patent application. Please enter the following amendments and consider the following remarks.

Amendments to the Abstract begin on page 2.

Remarks begin on page 3.

Amendments to the Abstract

Please delete the originally filed Abstract and insert therefor the text below.

--A reciprocating and reclining seating unit includes: a base unit with a first bearing surface; a generally horizontally-disposed seat positioned above the base; a generally upright backrest positioned above the base and substantially rearward of the seat; an extendable ottoman; a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links; a reciprocating mechanism attached to the base unit and the reclining mechanism, the reciprocating mechanism being configured to enable the seat, backrest and reclining mechanism to reciprocate relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and a power actuating unit attached to the reclining mechanism, the actuating unit configured to move the chair between an upright position, an intermediate TV position, and a fully reclined position.--

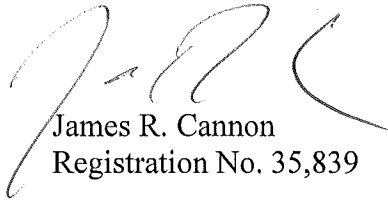
Attorney Docket No. 4362-138IPCT
Application No.: 13/228,746
Filed: September 9, 2011
Page 3 of 3

REMARKS

In response to the Notice to File Corrected Application Papers, hereinabove Applicant has amended the Abstract of the Disclosure to contain fewer than 150 words. It is believed that no new matter is added by these amendments and their entry and consideration are respectfully requested. In light of these amendments and the following remarks, Applicant respectfully request reconsideration of this application and examination of the pending claims.

No fee is believed due. However, the Commissioner is hereby authorized to charge any deficiency or credit any overpayment to Deposit Account No. 50-0220.

Respectfully submitted,

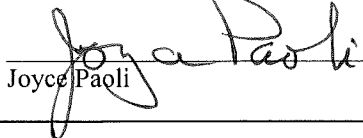


James R. Cannon
Registration No. 35,839

Customer Number 20792
Myers Bigel Sibley & Sajovec, P.A.
P.O. Box 37428
Raleigh, North Carolina 27627
Telephone: (919) 854-1400
Facsimile: (919) 854-1401

CERTIFICATION OF ELECTRONIC TRANSMISSION

I hereby certify that this correspondence is being transmitted via the Office electronic filing system in accordance with § 1.6(a)(4) to the U.S. Patent and Trademark Office on October 7, 2011.



Joyce Paoli



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APPLICATION NUMBER	FILING OR 371(C) DATE	FIRST NAMED APPLICANT	ATTY. DOCKET NO./TITLE
13/228,746	09/09/2011	D. Stephen Hoffman	4362-138IPCT

CONFIRMATION NO. 8133

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Date Mailed: 09/26/2011

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- A replacement abstract not exceeding 150 words in length and commencing on a separate sheet in compliance with 37 CFR 1.72(b) and 37 CFR 1.121 is required.

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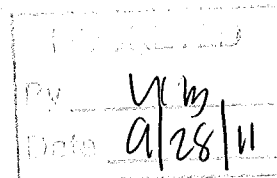
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Electronic Acknowledgement Receipt

EFS ID:	11133762
Application Number:	13228746
International Application Number:	
Confirmation Number:	8133
Title of Invention:	Reciprocating Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Paoli
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138IPCT
Receipt Date:	07-OCT-2011
Filing Date:	09-SEP-2011
Time Stamp:	13:35:25
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	no
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File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1	Certification and Request for Missing Parts	20111007132850062.pdf	288300 e14078073f2b65642771d0accd1a837b596b5c71	no	4

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New International Application Filed with the USPTO as a Receiving Office

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Attorney Docket No. 4362-138IPCT

PATENT

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman

Confirmation No: 8133

Application No.: 13/228,746

Art Unit: 3636

Filing Date: September 9, 2011

Examiner: TBA

For: RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

Date: February 1, 2012

Commissioner for Patents

Box 1450

Alexandria, VA 22313-1450

PRELIMINARY AMENDMENT

Sir:

This Preliminary Amendment is intended to add claims to the existing claim set.

Amendments to the Claims are set forth in the **Listing of Claims**, which begins on page 2 of this paper.

Remarks begin on page 6.

Listing of Claims

The following Listing of Claims supercedes prior versions of the claims.

1. (original) A seating unit, comprising:
 - a base unit with a first bearing surface;
 - a generally horizontally-disposed seat positioned above the base;
 - a generally upright backrest positioned above the base and substantially rearward of the seat;
 - an extendable ottoman;
 - a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
 - a reciprocating mechanism attached to the base unit and the reclining mechanism, the reciprocating mechanism being configured to enable the seat, backrest and reclining mechanism to reciprocate relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and
 - a linear actuating unit attached to the reclining mechanism, the linear actuating unit configured to move the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;
- wherein the linear actuating unit includes opposed first and second ends, and wherein the first end of the linear actuating unit moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the linear actuating unit moves rearwardly when the seating unit moves from the TV position to the fully reclined position.

2. (original) The seating unit defined in Claim 1, wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position.

3. (original) The seating unit defined in Claim 1, further comprising a locking mechanism that allows the seating unit to reciprocate while in the upright position but prevents reciprocating of the seating unit while in the TV and fully reclined positions.

4. (original) The seating unit defined in Claim 1, wherein the linear actuating unit is attached to an actuating mechanism, the actuating mechanism comprising a cross-member extending transversely across the seating unit, wherein the cross-member is pivotally attached to the actuating unit; and wherein the cross-member is pivotally attached to a lower swing link of the reclining mechanism, the lower swing link being pivotally attached to an upper swing link of the reclining mechanism and to a mounting bracket that is attached to the reciprocating mechanism.

5. (original) The seating unit defined in Claim 4, wherein the upper swing link is pivotally attached with the backrest.

6. (original) The seating unit defined in Claim 1, wherein the seat rises in moving from the TV position to the fully reclined position.

7. (original) The seating unit defined in Claim 1, wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the reciprocating mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

8. (original) The seating unit defined in Claim 7, wherein the lower swing link is angled, and wherein a segment of the lower swing link attached to the upper swing link is generally parallel to an axis defined by an extendable member of the linear actuating unit when the seating unit is in the upright and TV positions.

9. (original) The seating unit defined in Claim 8, wherein a first pivot defined by the cross-member and the lower swing link and a second pivot defined by the lower swing link and the upper swing link are below the axis defined by the extendable member of the actuating unit when the seating unit is in the upright and TV positions.

10. (original) The seating unit defined in Claim 9, wherein the lower swing link is attached to the mounting bracket at a third pivot, and wherein in the upright and TV positions, the first, second and third pivots define a first angle, and in the fully reclined position, the first, second and third pivots define a second angle that is larger than the first angle.

11. (original) The seating unit defined in Claim 1, wherein the reciprocating mechanism is a gliding mechanism.

12. (new) A reciprocating seating unit, comprising:
a base;
a generally horizontally-disposed seat positioned above the base;
a generally upright backrest positioned above the base and substantially rearward of the seat;
an extendable ottoman;
a reclining mechanism attached to the seat, the backrest, the ottoman and the base, the reclining mechanism comprising a plurality of pivotally interconnected links;
a reciprocating mechanism attached with the base unit and the reclining mechanism, the reciprocating mechanism configured to enable the seat, backrest and reclining mechanism to experience a longitudinally-directed reciprocating motion relative to the base unit; and

a linear actuator attached to the reclining mechanism, the linear actuator having first and second movable members, wherein the relative movement of the first and second movable members moves the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman are generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;

wherein the reclining mechanism includes:

a backpost that is fixed relative to the backrest;

a mounting bracket that is attached to the second movable member of the linear actuator;

a lower swing link that is attached to the mounting bracket; and

an upper swing link that is pivotally attached to the lower swing link and to the backpost.

13. (new) The seating unit defined in Claim 12, further comprising a seat adapter that is fixed relative to the seat and directly pivotally attached to the backpost.

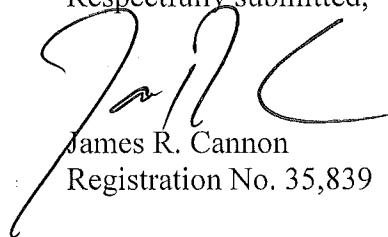
14. (new) The reciprocating seating unit defined in Claim 13, wherein the reclining mechanism includes a pantographic linkage that extends the footrest in the TV and fully reclined positions, and wherein the pantographic linkage comprises upper and lower ottoman swing links that are directly pivotally attached to the seat adapter.

In re: D. Stephen Hoffman
Application No.: not yet assigned
Filing Date: September 9, 2011
Page 6

REMARKS

Applicant has amended the claims to add Claims 12-14. Applicant submits that the present application is in condition for examination. Should the Examiner have any small matters outstanding of resolution, he is encouraged to telephone the undersigned at 919-854-1400 for expeditious handling.

Respectfully submitted,



James R. Cannon
Registration No. 35,839

USPTO Customer No. 20792
Myers Bigel Sibley & Sajovec
Post Office Box 37428
Raleigh, North Carolina 27627
Telephone: 919/854-1400
Facsimile: 919/854-1401

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Joyce Adair

Electronic Acknowledgement Receipt

EFS ID:	11974277
Application Number:	13228746
International Application Number:	
Confirmation Number:	8133
Title of Invention:	Reciprocating Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Adair
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138IPCT
Receipt Date:	01-FEB-2012
Filing Date:	09-SEP-2011
Time Stamp:	14:24:39
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	no
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File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1	Preliminary Amendment	4362-138IPCT.pdf	447799 c4a83f8ecef50243c627d5f8f047a9a0bf32fc5	no	6

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Information:

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New International Application Filed with the USPTO as a Receiving Office

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PATENT APPLICATION FEE DETERMINATION RECORD

Substitute for Form PTO-875

Application or Docket Number
13/228,746

APPLICATION AS FILED - PART I

(Column 1)		(Column 2)	SMALL ENTITY		OR	OTHER THAN SMALL ENTITY	
FOR	NUMBER FILED	NUMBER EXTRA	RATE(\$)	FEE(\$)		RATE(\$)	FEE(\$)
BASIC FEE (37 CFR 1.16(a), (b), or (c))	N/A	N/A	N/A	95		N/A	
SEARCH FEE (37 CFR 1.16(k), (l), or (m))	N/A	N/A	N/A	310		N/A	
EXAMINATION FEE (37 CFR 1.16(o), (p), or (q))	N/A	N/A	N/A	125		N/A	
TOTAL CLAIMS (37 CFR 1.16(j))	14	minus 20 = *	x 30 =	0.00	OR		
INDEPENDENT CLAIMS (37 CFR 1.16(h))	2	minus 3 = *	x 125 =	0.00			
APPLICATION SIZE FEE (37 CFR 1.16(s))	If the specification and drawings exceed 100 sheets of paper, the application size fee due is \$310 (\$155 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR 1.16(s).			0.00			
MULTIPLE DEPENDENT CLAIM PRESENT (37 CFR 1.16(j))				0.00			
			TOTAL	530		TOTAL	

* If the difference in column 1 is less than zero, enter "0" in column 2.

APPLICATION AS AMENDED - PART II

		(Column 1)		(Column 2)	(Column 3)	SMALL ENTITY		OR	OTHER THAN SMALL ENTITY	
AMENDMENT A		CLAIMS REMAINING AFTER AMENDMENT		HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE(\$)	ADDITIONAL FEE(\$)		RATE(\$)	ADDITIONAL FEE(\$)
	Total (37 CFR 1.16(i))	*	Minus	**	=	x	=	OR	x	=
	Independent (37 CFR 1.16(h))	*	Minus	***	=	x	=	OR	x	=
	Application Size Fee (37 CFR 1.16(s))							OR		
	FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))							OR		
						TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE	

		(Column 1)		(Column 2)	(Column 3)	SMALL ENTITY		OR	OTHER THAN SMALL ENTITY	
AMENDMENT B		CLAIMS REMAINING AFTER AMENDMENT		HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE(\$)	ADDITIONAL FEE(\$)		RATE(\$)	ADDITIONAL FEE(\$)
	Total (37 CFR 1.16(i))	*	Minus	**	=	x	=	OR	x	=
	Independent (37 CFR 1.16(h))	*	Minus	***	=	x	=	OR	x	=
	Application Size Fee (37 CFR 1.16(s))							OR		
	FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))							OR		
						TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE	

* If the entry in column 1 is less than the entry in column 2, write "0" in column 3.

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APPLICATION NUMBER	FILING or 371(c) DATE	GRP ART UNIT	FIL FEE REC'D	ATTY. DOCKET NO	TOT CLAIMS	IND CLAIMS
13/228,746	09/09/2011	3636	462	4362-138IPCT	14	2

CONFIRMATION NO. 8133

20792
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

UPDATED FILING RECEIPT



Date Mailed: 02/09/2012

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Applicant(s)

D. Stephen Hoffman, High Point, NC;
Marcus L. Murphy, Lexington, NC;

Power of Attorney: The patent practitioners associated with Customer Number 20792

Domestic Priority data as claimed by applicant

This application is a CON of 12/508,901 07/24/2009 PAT 8016348
which is a CIP of 12/276,567 11/24/2008 PAT 7997644

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Projected Publication Date: 05/17/2012

Non-Publication Request: No

Early Publication Request: No

**** SMALL ENTITY ****

Title

Reciprocating Seating Unit with Power Actuator

Preliminary Class

297

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PATENT APPLICATION FEE DETERMINATION RECORD Substitute for Form PTO-875				Application or Docket Number 13/228,746		Filing Date 09/09/2011		☐ To be Mailed	
APPLICATION AS FILED – PART I									
(Column 1)			(Column 2)			SMALL ENTITY ☒ OR		OTHER THAN SMALL ENTITY	
FOR	NUMBER FILED	NUMBER EXTRA	RATE (\$)	FEE (\$)		RATE (\$)	FEE (\$)		
☒ BASIC FEE (37 CFR 1.16(a), (b), or (c))	N/A	N/A	N/A	82		N/A			
☒ SEARCH FEE (37 CFR 1.16(k), (l), or (m))	N/A	N/A	N/A	270		N/A			
☒ EXAMINATION FEE (37 CFR 1.16(o), (p), or (q))	N/A	N/A	N/A	110		N/A			
TOTAL CLAIMS (37 CFR 1.16(j))	11 minus 20 =	* 0	X \$26 =	0	OR	X \$ =			
INDEPENDENT CLAIMS (37 CFR 1.16(h))	1 minus 3 =	* 0	X \$110 =	0		X \$ =			
☐ APPLICATION SIZE FEE (37 CFR 1.16(s))	If the specification and drawings exceed 100 sheets of paper, the application size fee due is \$250 (\$125 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR 1.16(s).								
☐ MULTIPLE DEPENDENT CLAIM PRESENT (37 CFR 1.16(j))									
			TOTAL	462		TOTAL			
APPLICATION AS AMENDED – PART II									
(Column 1)			(Column 2)			SMALL ENTITY OR		OTHER THAN SMALL ENTITY	
AMENDMENT	CLAIMS REMAINING AFTER AMENDMENT	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)		RATE (\$)	ADDITIONAL FEE (\$)	
	Total (37 CFR 1.16(i))	*	Minus **	=	X \$ =	OR	X \$ =		
	Independent (37 CFR 1.16(h))	*	Minus ***	=	X \$ =	OR	X \$ =		
	☐ Application Size Fee (37 CFR 1.16(s))								
	☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))					OR			
				TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE		
(Column 1)			(Column 2)			SMALL ENTITY OR		OTHER THAN SMALL ENTITY	
AMENDMENT	CLAIMS REMAINING AFTER AMENDMENT	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)		RATE (\$)	ADDITIONAL FEE (\$)	
	Total (37 CFR 1.16(i))	*	Minus **	=	X \$ =	OR	X \$ =		
	Independent (37 CFR 1.16(h))	*	Minus ***	=	X \$ =	OR	X \$ =		
	☐ Application Size Fee (37 CFR 1.16(s))								
	☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))					OR			
				TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE		
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Legal Instrument Examiner:
/EVA GILLIS/

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APPLICATION AS FILED – PART I										
(Column 1)			(Column 2)			SMALL ENTITY ☒ OR		OTHER THAN SMALL ENTITY		
FOR	NUMBER FILED	NUMBER EXTRA	RATE (\$)	FEE (\$)	OR	RATE (\$)	FEE (\$)			
☐ BASIC FEE (37 CFR 1.16(a), (b), or (c))	N/A	N/A	N/A			N/A				
☐ SEARCH FEE (37 CFR 1.16(k), (l), or (m))	N/A	N/A	N/A			N/A				
☐ EXAMINATION FEE (37 CFR 1.16(o), (p), or (q))	N/A	N/A	N/A			N/A				
TOTAL CLAIMS (37 CFR 1.16(j))	minus 20 =	*	X \$	=	OR	X \$	=			
INDEPENDENT CLAIMS (37 CFR 1.16(h))	minus 3 =	*	X \$	=		X \$	=			
☐ APPLICATION SIZE FEE (37 CFR 1.16(s))	If the specification and drawings exceed 100 sheets of paper, the application size fee due is \$250 (\$125 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR 1.16(s).									
☐ MULTIPLE DEPENDENT CLAIM PRESENT (37 CFR 1.16(j))										
* If the difference in column 1 is less than zero, enter "0" in column 2.			TOTAL			TOTAL				
APPLICATION AS AMENDED – PART II										
(Column 1)			(Column 2)			SMALL ENTITY OR		OTHER THAN SMALL ENTITY		
AMENDMENT	02/01/2012	CLAIMS REMAINING AFTER AMENDMENT	MINUS	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)	OR	RATE (\$)	ADDITIONAL FEE (\$)
	Total (37 CFR 1.16(i))	* 14	Minus	** 20	= 0	X \$30 =	0	OR	X \$	=
	Independent (37 CFR 1.16(h))	* 2	Minus	*** 3	= 0	X \$125 =	0	OR	X \$	=
☐ Application Size Fee (37 CFR 1.16(s))										
☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))								OR		
						TOTAL ADD'L FEE	0	OR	TOTAL ADD'L FEE	
(Column 1)			(Column 2)			SMALL ENTITY OR		OTHER THAN SMALL ENTITY		
AMENDMENT		CLAIMS REMAINING AFTER AMENDMENT	MINUS	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)	OR	RATE (\$)	ADDITIONAL FEE (\$)
	Total (37 CFR 1.16(i))	*	Minus	**	=	X \$	=	OR	X \$	=
	Independent (37 CFR 1.16(h))	*	Minus	***	=	X \$	=	OR	X \$	=
☐ Application Size Fee (37 CFR 1.16(s))										
☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))								OR		
						TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE	
* If the entry in column 1 is less than the entry in column 2, write "0" in column 3. ** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 20, enter "20". *** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 3, enter "3". The "Highest Number Previously Paid For" (Total or Independent) is the highest number found in the appropriate box in column 1.										

Legal Instrument Examiner:
/EVA GILLIS/

This collection of information is required by 37 CFR 1.16. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. **SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

If you need assistance in completing the form, call 1-800-PTO-9199 and select option 2.



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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
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13/228,746

09/09/2011

D. Stephen Hoffman

4362-138IPCT

8133

20792 7590 03/29/2012
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

EXAMINER

NELSON JR, MILTON

ART UNIT

PAPER NUMBER

3636

MAIL DATE

DELIVERY MODE

03/29/2012

PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action Summary	Application No.	Applicant(s)	
	13/228,746	HOFFMAN ET AL.	
	Examiner	Art Unit	
	MILTON NELSON JR	3636	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☐ Responsive to communication(s) filed on ____.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 1-14 is/are pending in the application.
- 5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-14 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☒ The drawing(s) filed on 9/9/11 is/are: a) ☒ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).
- 12) ☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

- 13) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☐ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|--|---|
| 1) ☒ Notice of References Cited (PTO-892) | 4) ☐ Interview Summary (PTO-413) |
| 2) ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948) | Paper No(s)/Mail Date. ____. |
| 3) ☒ Information Disclosure Statement(s) (PTO/SB/08) | 5) ☐ Notice of Informal Patent Application |
| Paper No(s)/Mail Date <u>9/9/11</u> . | 6) ☐ Other: ____. |

DETAILED ACTION

Information Disclosure Statement

The information referred to in the IDS filed September 9, 2011 has been considered.

Specification

The status of the parent application should be updated on page 1 of the specification.

Double Patenting

The nonstatutory double patenting rejection is based on a judicially created doctrine grounded in public policy (a policy reflected in the statute) so as to prevent the unjustified or improper timewise extension of the “right to exclude” granted by a patent and to prevent possible harassment by multiple assignees. A nonstatutory obviousness-type double patenting rejection is appropriate where the conflicting claims are not identical, but at least one examined application claim is not patentably distinct from the reference claim(s) because the examined application claim is either anticipated by, or would have been obvious over, the reference claim(s). See, e.g., *In re Berg*, 140 F.3d 1428, 46 USPQ2d 1226 (Fed. Cir. 1998); *In re Goodman*, 11 F.3d 1046, 29 USPQ2d 2010 (Fed. Cir. 1993); *In re Longi*, 759 F.2d 887, 225 USPQ 645 (Fed. Cir. 1985); *In re Van Ornum*, 686 F.2d 937, 214 USPQ 761 (CCPA 1982); *In re Vogel*, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); and *In re Thorington*, 418 F.2d 528, 163 USPQ 644 (CCPA 1969).

A timely filed terminal disclaimer in compliance with 37 CFR 1.321(c) or 1.321(d) may be used to overcome an actual or provisional rejection based on a nonstatutory double patenting ground provided the conflicting application or patent either is shown to be commonly owned with this application, or claims an invention made as a result of activities undertaken within the scope of a joint research agreement.

Effective January 1, 1994, a registered attorney or agent of record may sign a terminal disclaimer. A terminal disclaimer signed by the assignee must fully comply with 37 CFR 3.73(b).

Claim 1 is rejected on the ground of nonstatutory obviousness-type double patenting as being unpatentable over claim 13 of U.S. Patent No. 8,016,348. Although the conflicting claims are not identical, they are not patentably distinct from each other because the examined claim is either anticipated by, or would have been obvious over the reference claim. Although the conflicting claims are not identical, they are not patentably distinct from each other because the examined claim is generic to all that is recited in claim 13 of the patent. In other words, claim 13, of the patent fully encompasses the subject matter of the examined claim and therefore anticipates the examined claim. Since the examined claim is anticipated by claim 13 of the patent, it is not patentably distinct from claim 13 of the patent. Thus the invention of claim 13 of the patent is in effect a species of the generic invention of the examined claim. It has been held that the generic invention is anticipated by the species. Since the examined claim is anticipated (fully encompassed) by claim 13 of the patent, the examined claim is not patentably distinct from claim 13 of the patent, regardless of any additional subject matter present in claim 13, respectively of the patent.

Claim 11 is rejected on the ground of nonstatutory obviousness-type double patenting as being unpatentable over claim 16 of U.S. Patent No. 7,997,644. Although the conflicting claims are not identical, they are not patentably distinct from each other because the examined claim is either anticipated by, or would have been obvious over the reference claim. Although the conflicting claims are not identical, they are not

Art Unit: 3636

patentably distinct from each other because the examined claim is generic to all that is recited in claim 16 of the patent. In other words, claim 16, of the patent fully encompasses the subject matter of the examined claim and therefore anticipates the examined claim. Since the examined claim is anticipated by claim 16 of the patent, it is not patentably distinct from claim 16 of the patent. Thus the invention of claim 16 of the patent is in effect a species of the generic invention of the examined claim. It has been held that the generic invention is anticipated by the species. Since the examined claim is anticipated (fully encompassed) by claim 16 of the patent, the examined claim is not patentably distinct from claim 16 of the patent, regardless of any additional subject matter present in claim 16, respectively of the patent.

Claim Rejections - 35 USC § 112

The following is a quotation of the second paragraph of 35 U.S.C. 112:

The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

Claims 1-14 are rejected under 35 U.S.C. 112, second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which applicant regards as the invention.

Claim 1 recites the limitation "the base" in line 3. There is insufficient antecedent basis for this limitation in the claim.

Claim 1 recites the limitation "the chair" in line 14. There is insufficient antecedent basis for this limitation in the claim.

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Claim 1 recites the phrase "the ottoman are generally" in line 15. This phrase is grammatically vague.

Claim 11 recites the phrase "the ottoman are generally" in line 15. This phrase is grammatically vague.

The remaining claims are indefinite since each depends from an indefinite claim.

Allowable Subject Matter

Claims 1 and 11 would be allowable if rewritten or amended to overcome the rejection(s) under 35 U.S.C. 112, 2nd paragraph, set forth in this Office action.

Claims 2-10 and 12-14 would be allowable if rewritten to overcome the rejection(s) under 35 U.S.C. 112, 2nd paragraph, set forth in this Office action and to include all of the limitations of the base claim and any intervening claims.

Conclusion

The prior art made of record and not relied upon is considered pertinent to applicant's disclosure. Gall (4212495) shows a reclining chair that is movable between an upright position and various adjusted positions. Crum (7445279) shows a reclining chair that is movable between upright, TV, and reclined positions. Jackson et al (4365836) shows a reclining chair with a linear actuating mechanism.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to MILTON NELSON JR whose telephone number is

Art Unit: 3636

(571)272-6861. The examiner can normally be reached on Mon-Thurs, and alternate Fridays, 5:30-3:00 EST.

The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Milton Nelson, Jr./
Primary Examiner, Art Unit 3636

mn
March 25, 2012

Notice of References Cited	Application/Control No. 13/228,746	Applicant(s)/Patent Under Reexamination HOFFMAN ET AL.	
	Examiner MILTON NELSON JR	Art Unit 3636	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
*	A	US-4,212,495	07-1980	Gall, John C.	297/84
*	B	US-7,445,279	11-2008	Crum, Michael Andrew	297/84
*	C	US-4,365,836	12-1982	Jackson et al.	297/85M
	D	US-			
	E	US-			
	F	US-			
	G	US-			
	H	US-			
	I	US-			
	J	US-			
	K	US-			
	L	US-			
	M	US-			

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	
	V	
	W	
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.

<i>Index of Claims</i> 	Application/Control No. 13228746	Applicant(s)/Patent Under Reexamination HOFFMAN ET AL.
	Examiner MILTON NELSON JR	Art Unit 3636

✓	Rejected	-	Cancelled	N	Non-Elected	A	Appeal
=	Allowed	÷	Restricted	I	Interference	O	Objected

☐ Claims renumbered in the same order as presented by applicant		☐ CPA		☐ T.D.		☐ R.1.47			
CLAIM		DATE							
Final	Original	03/25/2012							
	1	✓							
	2	✓							
	3	✓							
	4	✓							
	5	✓							
	6	✓							
	7	✓							
	8	✓							
	9	✓							
	10	✓							
	11	✓							
	12	✓							
	13	✓							
	14	✓							

Search Notes 	Application/Control No. 13228746	Applicant(s)/Patent Under Reexamination HOFFMAN ET AL.
	Examiner MILTON NELSON JR	Art Unit 3636

SEARCHED			
Class	Subclass	Date	Examiner
297	85M, 69, Dig. 7	3/25/12	MN

SEARCH NOTES		
Search Notes	Date	Examiner
EAST, text	3/25/12	MN
All related cases checked	3/25/12	MN

INTERFERENCE SEARCH			
Class	Subclass	Date	Examiner

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EAST Search History

EAST Search History (Prior Art)

Ref #	Hits	Search Query	DBs	Default Operator	Plurals	Time Stamp
L1	51	("2526623" "2714922" "20060082195" "3147038" "3163464" "3279847" "3352601" "3383135" "3493264" "3622198" "3622202" "3637255" "3863980" "4307912" "4386803" "4519647" "4674794" "4681365" "4682815" "4691964" "4696512" "4707025" "4722566" "4813743" "4915444" "5007679" "5086769" "5294177" "5564781" "5775775" "5876094" "5884970" "5931535" "5954392" "0507270" "6000754" "6135559" "6231120" "6491342" "6540291" "6612650" "6634706" "6733071" "6945599" "6948777" "7021711" "7040692" "7083235" "7188904" "7293834" "7311359").PN.	US-PGPUB; USPAT	OR	OFF	2012/03/25 15:53
L2	12697	reclining	US-PGPUB; USPAT	OR	OFF	2012/03/25 16:12
L3	289	tv adj position	US-PGPUB; USPAT	OR	OFF	2012/03/25 16:12
L4	180	l2 and l3	US-PGPUB; USPAT	OR	OFF	2012/03/25 16:12
L5	32	linear and l4	US-PGPUB; USPAT	OR	OFF	2012/03/25 16:13
L6	220	(297/69).OCLS.	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2012/03/25 16:19
L7	138	(297/Dig.7).OCLS.	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2012/03/25 16:29
L8	57	(297/85M).OCLS.	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2012/03/25 16:40
S1	3	"8016348" or "7997644"	USPAT	OR	OFF	2012/03/25 14:01
S2	2	S1 and reciprocating	USPAT	OR	OFF	2012/03/25 14:03

S3	2	S1 and reciprocating and gliding	USPAT	OR	OFF	2012/03/25 14:04
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BIB DATA SHEET

CONFIRMATION NO. 8133

SERIAL NUMBER 13/228,746	FILING or 371(c) DATE 09/09/2011 RULE	CLASS 297	GROUP ART UNIT 3636	ATTORNEY DOCKET NO. 4362-138IPCT	
APPLICANTS D. Stephen Hoffman, High Point, NC; Marcus L. Murphy, Lexington, NC; ** CONTINUING DATA ***** This application is a CON of 12/508,901 07/24/2009 PAT 8,016,348 which is a CIP of 12/276,567 11/24/2008 PAT 7,997,644 ** FOREIGN APPLICATIONS ***** ** IF REQUIRED, FOREIGN FILING LICENSE GRANTED ** ** SMALL ENTITY ** 09/20/2011					
Foreign Priority claimed ☐ Yes ☒ No 35 USC 119(a-d) conditions met ☐ Yes ☒ No Verified and /MILTON NELSON Acknowledged JR/ Examiner's Signature	☐ Met after Allowance Initials	STATE OR COUNTRY NC	SHEETS DRAWINGS 8	TOTAL CLAIMS 14	INDEPENDENT CLAIMS 2
ADDRESS MYERS BIGEL SIBLEY & SAJOVEC PO BOX 37428 RALEIGH, NC 27627 UNITED STATES					
TITLE Reciprocating Seating Unit with Power Actuator					
FILING FEE RECEIVED 462	FEES: Authority has been given in Paper No. _____ to charge/credit DEPOSIT ACCOUNT No. _____ for following:		☐ All Fees ☐ 1.16 Fees (Filing) ☐ 1.17 Fees (Processing Ext. of time) ☐ 1.18 Fees (Issue) ☐ Other _____ ☐ Credit		

11/10/2009		Complete if Known	
INFORMATION DISCLOSURE STATEMENT BY APPLICANT (use as many sheets as necessary)		Application Number	Not yet assigned
		Filing Date	September 9, 2011
		First Named Inventor	D. Stephen Hoffman
		Art Unit	TBA
		Examiner Name	TBA
		Attorney Docket Number	4362-138IPCT
Sheet	A1	of	A2

U.S. PATENT DOCUMENTS AND APPLICATIONS						
Examin er Initials*	Cite No.	Document Number		Publication Date MM-DD- YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear
		Number-Kind Code (if known)				
	1.	US-	7,311,359 B2	12-25-2007	Smith	
	2.	US-	7,293,834 B2	11-13-2007	Riach et al.	
	3.	US-	7,188,904 B2	03-13-2007	Bruck et al.	
	4.	US-	7,083,235 B2	08-01-2006	Grimm et al.	
	5.	US-	7,040,692 B1	05-2006	Pine, James J.	
	6.	US-	7,021,711 B1	04-04-2006	Hoffman et al.	
	7.	US-	6,948,777 B2	09-27-2005	Marshall et al.	
	8.	US-	6,945,599	09-2005	May	
	9.	US-	6,733,071	05-2004	Guillot	
	10.	US-	6,634,706	10-2003	May	
	11.	US-	6,612,650 B1	09-02-2003	Ambrosio et al.	
	12.	US-	6,540,291	04-01-2003	Hoffman et al.	
	13.	US-	6,491,342 B1	12-10-2002	Smith	
	14.	US-	6,231,120	05-2001	Wiecek	
	15.	US-	6,135,559	10-2000	Kowaiski	
	16.	US-	6,000,754	12-14-1999	Lawson	
	17.	US-	5,954,392	09-1999	Liss et al.	
	18.	US-	5,931,535 A	08-03-1999	Sweet	
	19.	US-	5,884,970 A	03-23-1999	Howard	
	20.	US-	5,876,094	03-1999	Hoffman	
	21.	US-	5,775,775	07-1998	Hoffman, D. Stephen	
	22.	US-	5,564,781	10-1996	Pine	
	23.	US-	5,294,177	03-1994	Rasnick et al.	
	24.	US-	5,086,769	02-11-1992	Vianello et al.	
	25.	US-	5,007,679	04-16-1991	Mizelle	
	26.	US-	4,915,444	04-10-1990	Rogers Jr.	
	27.	US-	4,813,743	03-21-1989	Mizelle	
	28.	US-	4,722,566	02-02-1988	Castellini	
	29.	US-	4,707,025	11-1987	Rogers, Jr.	
	30.	US-	4,696,512	09-29-1987	Burnett et al.	
	31.	US-	4,691,964	09-08-1987	Morgan	
	32.	US-	4,682,815 A	07-28-1987	Steifensand	
	33.	US-	4,681,365	07-21-1987	Pine	
	34.	US-	4,674,794	06-23-1987	Pine	
	35.	US-	4,519,647	05-28-1985	Rogers	
	36.	US-	4,386,803	06-07-1983	Gilderbloom	
	37.	US-	4,307,912	12-29-1981	Watt et al.	
	38.	US-	3,863,980	02-04-1975	Ciner	

Examiner Signature		Date Considered	
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

11/10/2009		Complete if Known	
INFORMATION DISCLOSURE STATEMENT BY APPLICANT (use as many sheets as necessary)		Application Number	Not yet assigned
		Filing Date	September 9, 2011
		First Named Inventor	D. Stephen Hoffman
		Art Unit	TBA
		Examiner Name	TBA
Sheet	A2	of	A2
		Attorney Docket Number	4362-138IPCT

	39.	US-	3,637,255	01-1972	Re, Frank M.	
	40.	US-	3,622,202	11-23-1971	Brown	
	41.	US-	3,622,198	11-1971	Re, Frank M.	
	42.	US-	3,493,264	02-1970	Re, Frank M.	
	43.	US-	3,383,135	05-14-1968	Posh	
	44.	US-	3,352,601	11-1967	Izchak Cycowicz	
	45.	US-	3,279,847	10-1966	Re	
	46.	US-	3,163,464	12-1964	Martin Leonard L	
	47.	US-	3,147,038	09-01-1964	Barabas	
	48.	US-	2,714,922	08-09-1955	McKibban et al.	
	49.	US-	2,526,623 A	10-24-1950	Maurer	
	50.	US-	0,507,270 A	10-24-1893	Name Not Available	
	51.	US-	2006/0082195 A1	04-20-2006	Jiang	

FOREIGN PATENT DOCUMENTS

Examiner Initials*	Cite No.	Foreign Patent Document Country Code, Number, Kind Code (if known)	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear	T
	52.	GB 2 106 777 A	04-20-1983	Stella-Mobelwerk GmbH (DE)		Abstra ct

NON PATENT LITERATURE DOCUMENTS

Examiner Initials*	Cite No.	Include name of the author (in CAPITAL LETTERS), title of the article (when appropriate), title of the item (book, magazine, journal, serial, symposium, catalog, etc.), date, page(s), volume-issue number(s), publisher, city and/or country where published	T
	53.	Lusch Brochure: "Functional Fitting and Tubular steel frames for Relaxing Chairs (11 pages), Functional Fittings for Sofabeds and Beds (10 pages), Bed Fitting (5 pages) and Upholstery joints and accessories for furniture (9 pages)", (available before April 7, 2006).	Yes
	54.	"Stawett Functional Bed Mechanisms Brochure", pp. 3-93 (2001).	Yes

Examiner Signature	/Milton Nelson, Jr/	Date Considered	03/25/2012
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

ALL REFERENCES CONSIDERED EXCEPT WHERE LINED THROUGH. /MN/



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UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
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Alexandria, Virginia 22313-1450
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APPLICATION NUMBER	FILING OR 371(C) DATE	FIRST NAMED APPLICANT	ATTY. DOCKET NO./TITLE
13/228,746	09/09/2011	D. Stephen Hoffman	4362-138IPCT

CONFIRMATION NO. 8133

PUBLICATION NOTICE



OC000000054329344

20792
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

Title:Reciprocating Seating Unit with Power Actuator

Publication No.US-2012-0119547-A1

Publication Date:05/17/2012

NOTICE OF PUBLICATION OF APPLICATION

The above-identified application will be electronically published as a patent application publication pursuant to 37 CFR 1.211, et seq. The patent application publication number and publication date are set forth above.

The publication may be accessed through the USPTO's publically available Searchable Databases via the Internet at www.uspto.gov. The direct link to access the publication is currently <http://www.uspto.gov/patft/>.

The publication process established by the Office does not provide for mailing a copy of the publication to applicant. A copy of the publication may be obtained from the Office upon payment of the appropriate fee set forth in 37 CFR 1.19(a)(1). Orders for copies of patent application publications are handled by the USPTO's Office of Public Records. The Office of Public Records can be reached by telephone at (703) 308-9726 or (800) 972-6382, by facsimile at (703) 305-8759, by mail addressed to the United States Patent and Trademark Office, Office of Public Records, Alexandria, VA 22313-1450 or via the Internet.

In addition, information on the status of the application, including the mailing date of Office actions and the dates of receipt of correspondence filed in the Office, may also be accessed via the Internet through the Patent Electronic Business Center at www.uspto.gov using the public side of the Patent Application Information and Retrieval (PAIR) system. The direct link to access this status information is currently <http://pair.uspto.gov/>. Prior to publication, such status information is confidential and may only be obtained by applicant using the private side of PAIR.

Further assistance in electronically accessing the publication, or about PAIR, is available by calling the Patent Electronic Business Center at 1-866-217-9197.

Office of Data Management, Application Assistance Unit (571) 272-4000, or (571) 272-4200, or 1-888-786-0101

**TERMINAL DISCLAIMER TO OBIATE A DOUBLE PATENTING
REJECTION OVER A "PRIOR" PATENT**Docket Number (Optional)
4362-138IPCT

In re Application of: D. Stephen Hoffman

Application No.: 13/228,746

Filed: September 9, 2011

For: RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

The owner*, Ultra-Mek, Inc., of 100 percent interest in the instant application hereby disclaims, except as provided below, the terminal part of the statutory term of any patent granted on the instant application which would extend beyond the expiration date of the full statutory term of **prior patent** No. 8016348 as the term of said **prior patent** is presently shortened by any terminal disclaimer. The owner hereby agrees that any patent so granted on the instant application shall be enforceable only for and during such period that it and the **prior patent** are commonly owned. This agreement runs with any patent granted on the instant application and is binding upon the grantee, its successors or assigns.

In making the above disclaimer, the owner does not disclaim the terminal part of the term of any patent granted on the instant application that would extend to the expiration date of the full statutory term of the **prior patent**, "as the term of said **prior patent** is presently shortened by any terminal disclaimer," in the event that said **prior patent** later:

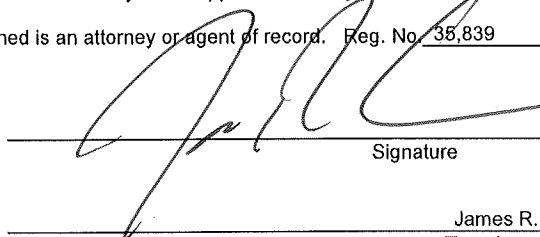
- expires for failure to pay a maintenance fee;
- is held unenforceable;
- is found invalid by a court of competent jurisdiction;
- is statutorily disclaimed in whole or terminally disclaimed under 37 CFR 1.321;
- has all claims canceled by a reexamination certificate;
- is reissued; or
- is in any manner terminated prior to the expiration of its full statutory term as presently shortened by any terminal disclaimer.

Check either box 1 or 2 below, if appropriate.

1. ☐ For submissions on behalf of a business/organization (e.g., corporation, partnership, university, government agency, etc.), the undersigned is empowered to act on behalf of the business/organization.

I hereby declare that all statements made herein of my own knowledge are true and that all statements made on information and belief are believed to be true; and further that these statements were made with the knowledge that willful false statements and the like so made are punishable by fine or imprisonment, or both, under Section 1001 of Title 18 of the United States Code and that such willful false statements may jeopardize the validity of the application or any patent issued thereon.

2. ☒ The undersigned is an attorney or agent of record. Reg. No. 35,839



Signature

June 29, 2012

Date

James R. Cannon
Typed or printed name919-854-1400
Telephone Number

- ☒ Terminal disclaimer fee under 37 CFR 1.20(d) included.

WARNING: Information on this form may become public. Credit card information should not be included on this form. Provide credit card information and authorization on PTO-2038.

*Statement under 37 CFR 3.73(b) is required if terminal disclaimer is signed by the assignee (owner).
Form PTO/SB/96 may be used for making this certification. See MPEP § 324.

This collection of information is required by 37 CFR 1.321. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.11 and 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.

Electronic Patent Application Fee Transmittal

Application Number:	13228746			
Filing Date:	09-Sep-2011			
Title of Invention:	Reciprocating Seating Unit with Power Actuator			
First Named Inventor/Applicant Name:	D. Stephen Hoffman			
Filer:	James R. Cannon/Cara Rose			
Attorney Docket Number:	4362-138IPCT			
Filed as Small Entity				
Utility under 35 USC 111(a) Filing Fees				
Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Pages:				
Claims:				
Miscellaneous-Filing:				
Petition:				
Patent-Appeals-and-Interference:				
Post-Allowance-and-Post-Issuance:				
Extension-of-Time:				

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Miscellaneous:				
Statutory or terminal disclaimer	2814	1	80	80
Total in USD (\$)				80

Electronic Acknowledgement Receipt

EFS ID:	13143665
Application Number:	13228746
International Application Number:	
Confirmation Number:	8133
Title of Invention:	Reciprocating Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Cara Rose
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138IPCT
Receipt Date:	29-JUN-2012
Filing Date:	09-SEP-2011
Time Stamp:	14:08:37
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Deposit Account
Payment was successfully received in RAM	\$80
RAM confirmation Number	541
Deposit Account	500220
Authorized User	

File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
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1		4362_138IPCT_Amend_TD_as_ filed.pdf	615852 b4f748b9d578f30cb08ab6457d4745e5e93405f8	yes	7
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Amendment/Req. Reconsideration-After Non-Final Reject		1	1	
	Claims		2	5	
	Applicant Arguments/Remarks Made in an Amendment		6	6	
	Terminal Disclaimer Filed		7	7	
Warnings:					
Information:					
2	Fee Worksheet (SB06)	fee-info.pdf	29936 9c3d57f6246eb575d8611e85700f252e3932ca5b	no	2
Warnings:					
Information:					
Total Files Size (in bytes):			645788		
This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503. <u>New Applications Under 35 U.S.C. 111</u> If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application. <u>National Stage of an International Application under 35 U.S.C. 371</u> If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course. <u>New International Application Filed with the USPTO as a Receiving Office</u> If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.					

Attorney Docket No. 4362-138IPCT

PATENT

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman

Confirmation No: 8133

Application No.: 13/228,746

Art Unit: 3636

Filing Date: September 9, 2011

Examiner: Milton Nelson Jr.

For: RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

Date: June 29, 2012

Mail Stop AMENDMENT

Commissioner for Patents

Box 1450

Alexandria, VA 22313-1450

AMENDMENT AND RESPONSE TO OFFICE ACTION DATED MARCH 29, 2012

Sir:

This is responsive to the final Office Action mailed March 29, 2012 (hereinafter "the Action") regarding the above-referenced patent application. Please enter the following amendments and consider the following remarks.

Amendments to the Claims are set forth in the **Listing of Claims**, which begins on page 2 below.

Remarks begin on page 6 below.

LISTING OF CLAIMS

The following Listing of Claims replaces all prior versions.

1. (Currently amended) A seating unit, comprising:
 - a base unit with a first bearing surface;
 - a generally horizontally-disposed seat positioned above the base unit;
 - a generally upright backrest positioned above the base and substantially rearward of the seat;
 - an extendable ottoman;
 - a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
 - a reciprocating mechanism attached to the base unit and the reclining mechanism, the reciprocating mechanism being configured to enable the seat, backrest and reclining mechanism to reciprocate relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and
 - a linear actuating unit attached to the reclining mechanism, the linear actuating unit configured to move the ~~chair~~ seating unit between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman ~~are~~ is generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;
- wherein the linear actuating unit includes opposed first and second ends, and wherein the first end of the linear actuating unit moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the linear actuating unit moves rearwardly when the seating unit moves from the TV position to the fully reclined position.
2. (original) The seating unit defined in Claim 1, wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and

fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position.

3. (original) The seating unit defined in Claim 1, further comprising a locking mechanism that allows the seating unit to reciprocate while in the upright position but prevents reciprocating of the seating unit while in the TV and fully reclined positions.

4. (original) The seating unit defined in Claim 1, wherein the linear actuating unit is attached to an actuating mechanism, the actuating mechanism comprising a cross-member extending transversely across the seating unit, wherein the cross-member is pivotally attached to the actuating unit; and wherein the cross-member is pivotally attached to a lower swing link of the reclining mechanism, the lower swing link being pivotally attached to an upper swing link of the reclining mechanism and to a mounting bracket that is attached to the reciprocating mechanism.

5. (original) The seating unit defined in Claim 4, wherein the upper swing link is pivotally attached with the backrest.

6. (original) The seating unit defined in Claim 1, wherein the seat rises in moving from the TV position to the fully reclined position.

7. (original) The seating unit defined in Claim 1, wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the reciprocating mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

8. (original) The seating unit defined in Claim 7, wherein the lower swing link is angled, and wherein a segment of the lower swing link attached to the upper swing link is

generally parallel to an axis defined by an extendable member of the linear actuating unit when the seating unit is in the upright and TV positions.

9. (original) The seating unit defined in Claim 8, wherein a first pivot defined by the cross-member and the lower swing link and a second pivot defined by the lower swing link and the upper swing link are below the axis defined by the extendable member of the actuating unit when the seating unit is in the upright and TV positions.

10. (original) The seating unit defined in Claim 9, wherein the lower swing link is attached to the mounting bracket at a third pivot, and wherein in the upright and TV positions, the first, second and third pivots define a first angle, and in the fully reclined position, the first, second and third pivots define a second angle that is larger than the first angle.

11. (original) The seating unit defined in Claim 1, wherein the reciprocating mechanism is a gliding mechanism.

12. (Currently amended) A reciprocating seating unit, comprising:
a base;
a generally horizontally-disposed seat positioned above the base;
a generally upright backrest positioned above the base and substantially rearward of the seat;
an extendable ottoman;
a reclining mechanism attached to the seat, the backrest, the ottoman and the base, the reclining mechanism comprising a plurality of pivotally interconnected links;
a reciprocating mechanism attached with the base unit and the reclining mechanism, the reciprocating mechanism configured to enable the seat, backrest and reclining mechanism to experience a longitudinally-directed reciprocating motion relative to the base unit; and
a linear actuator attached to the reclining mechanism, the linear actuator having first and second movable members, wherein the relative movement of the first and second movable

members moves the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman ~~are~~ is generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;

wherein the reclining mechanism includes:

a backpost that is fixed relative to the backrest;

a mounting bracket that is attached to the second movable member of the linear actuator;

a lower swing link that is attached to the mounting bracket; and

an upper swing link that is pivotally attached to the lower swing link and to the backpost.

13. (previously presented) The seating unit defined in Claim 12, further comprising a seat adapter that is fixed relative to the seat and directly pivotally attached to the backpost.

14. (previously presented) The reciprocating seating unit defined in Claim 13, wherein the reclining mechanism includes a pantographic linkage that extends the footrest in the TV and fully reclined positions, and wherein the pantographic linkage comprises upper and lower ottoman swing links that are directly pivotally attached to the seat adapter.

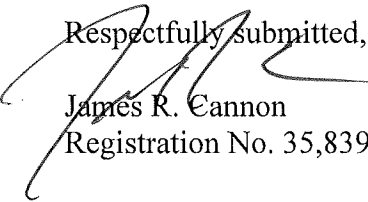
In re: D. Stephen Hoffman
Application No.: 13/228,746
Filing Date: September 9, 2011
Page 6

REMARKS

At the time of the Action, Claims 1-14 were pending. Claims 1 and 11 have been amended above to address rejections under Section 112, second paragraph. Claims 1 and 11 stand rejected under the doctrine of obviousness-type double patenting with respect to U.S. Patent No. 8,016,348. A Terminal Disclaimer has been filed concurrently to address this rejection.

The points and concerns raised in the Action having been addressed in full herein, it is respectfully submitted that this application is in condition for allowance, which action is respectfully requested. Should there be any remaining concerns, the Examiner is encouraged to contact the undersigned attorney by telephone to expedite the prosecution of this application.

Respectfully submitted,

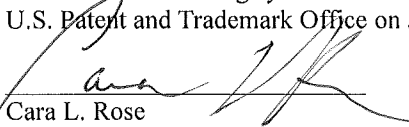

James R. Cannon
Registration No. 35,839

Customer Number 20792

Myers Bigel Sibley & Sajovec, P.A.
P.O. Box 37428
Raleigh, North Carolina 27627
Telephone: (919) 854-1400
Facsimile: (919) 854-1401

CERTIFICATION OF ELECTRONIC TRANSMISSION

I hereby certify that this correspondence is being transmitted via the Office electronic filing system in accordance with § 1.6(a)(4) to the U.S. Patent and Trademark Office on June 29, 2012.


Cara L. Rose

Application Number 	Application/Control No. 13/228,746	Applicant(s)/Patent under Reexamination HOFFMAN ET AL.	
Document Code - DISQ		Internal Document – DO NOT MAIL	

TERMINAL DISCLAIMER	☒ APPROVED	☐ DISAPPROVED
Date Filed : 6/29/12	This patent is subject to a Terminal Disclaimer	

Approved/Disapproved by:

Lawana Hixon

Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.

PATENT APPLICATION FEE DETERMINATION RECORD Substitute for Form PTO-875					Application or Docket Number 13/228,746		Filing Date 09/09/2011		☐ To be Mailed	
APPLICATION AS FILED – PART I										
(Column 1)			(Column 2)		SMALL ENTITY ☒ OR			OTHER THAN SMALL ENTITY		
FOR	NUMBER FILED	NUMBER EXTRA	RATE (\$)	FEE (\$)	OR	RATE (\$)	FEE (\$)			
☐ BASIC FEE (37 CFR 1.16(a), (b), or (c))	N/A	N/A	N/A			N/A				
☐ SEARCH FEE (37 CFR 1.16(k), (l), or (m))	N/A	N/A	N/A			N/A				
☐ EXAMINATION FEE (37 CFR 1.16(o), (p), or (q))	N/A	N/A	N/A			N/A				
TOTAL CLAIMS (37 CFR 1.16(j))	minus 20 =	*	X \$	=	OR	X \$	=			
INDEPENDENT CLAIMS (37 CFR 1.16(h))	minus 3 =	*	X \$	=		X \$	=			
☐ APPLICATION SIZE FEE (37 CFR 1.16(s))	If the specification and drawings exceed 100 sheets of paper, the application size fee due is \$250 (\$125 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR 1.16(s).									
☐ MULTIPLE DEPENDENT CLAIM PRESENT (37 CFR 1.16(j))										
* If the difference in column 1 is less than zero, enter "0" in column 2.			TOTAL			TOTAL				
APPLICATION AS AMENDED – PART II										
(Column 1)			(Column 2)		SMALL ENTITY OR			OTHER THAN SMALL ENTITY		
AMENDMENT	06/29/2012	CLAIMS REMAINING AFTER AMENDMENT	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)	OR	RATE (\$)	ADDITIONAL FEE (\$)	
	Total (37 CFR 1.16(i))	* 14	Minus	** 20	= 0	X \$30 =	0	OR	X \$ =	
	Independent (37 CFR 1.16(h))	* 2	Minus	*** 3	= 0	X \$125 =	0	OR	X \$ =	
	☐ Application Size Fee (37 CFR 1.16(s))									
	☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))									
					TOTAL ADD'L FEE	0	OR	TOTAL ADD'L FEE		
(Column 1)			(Column 2)		SMALL ENTITY OR			OTHER THAN SMALL ENTITY		
AMENDMENT	CLAIMS REMAINING AFTER AMENDMENT	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)	OR	RATE (\$)	ADDITIONAL FEE (\$)		
	Total (37 CFR 1.16(i))	*	Minus	**	=	X \$ =	OR	X \$ =		
	Independent (37 CFR 1.16(h))	*	Minus	***	=	X \$ =	OR	X \$ =		
	☐ Application Size Fee (37 CFR 1.16(s))									
	☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))									
					TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE		
* If the entry in column 1 is less than the entry in column 2, write "0" in column 3. ** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 20, enter "20". *** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 3, enter "3". The "Highest Number Previously Paid For" (Total or Independent) is the highest number found in the appropriate box in column 1.										

Legal Instrument Examiner:
/ROCHELLE GETER/

This collection of information is required by 37 CFR 1.16. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. **SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
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13/228,746

09/09/2011

D. Stephen Hoffman

4362-138IPCT

8133

20792 7590 07/13/2012
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

EXAMINER

NELSON JR, MILTON

ART UNIT

PAPER NUMBER

3636

MAIL DATE

DELIVERY MODE

07/13/2012

PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action Summary	Application No. 13/228,746	Applicant(s) HOFFMAN ET AL.	
	Examiner MILTON NELSON JR	Art Unit 3636	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 29 June 2012.
- 2a) ☒ This action is **FINAL**. 2b) ☐ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 1-14 is/are pending in the application.
- 5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☒ Claim(s) 12-14 is/are allowed.
- 7) ☒ Claim(s) 1-11 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).
- 12) ☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

- 13) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☐ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|--|---|
| 1) ☐ Notice of References Cited (PTO-892) | 4) ☐ Interview Summary (PTO-413) |
| 2) ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948) | Paper No(s)/Mail Date. ____. |
| 3) ☐ Information Disclosure Statement(s) (PTO/SB/08) | 5) ☐ Notice of Informal Patent Application |
| Paper No(s)/Mail Date ____. | 6) ☐ Other: ____. |

DETAILED ACTION

Specification

The status of the parent application should be updated on page 1 of the specification.

Terminal Disclaimer

The terminal disclaimer filed on June 29, 2012 disclaiming the terminal portion of any patent granted on this application which would extend beyond the expiration date of U.S. Patent No. 8,016,348 has been reviewed and is accepted. The terminal disclaimer has been recorded.

Double Patenting

The nonstatutory double patenting rejection is based on a judicially created doctrine grounded in public policy (a policy reflected in the statute) so as to prevent the unjustified or improper timewise extension of the "right to exclude" granted by a patent and to prevent possible harassment by multiple assignees. A nonstatutory obviousness-type double patenting rejection is appropriate where the conflicting claims are not identical, but at least one examined application claim is not patentably distinct from the reference claim(s) because the examined application claim is either anticipated by, or would have been obvious over, the reference claim(s). See, e.g., *In re Berg*, 140 F.3d 1428, 46 USPQ2d 1226 (Fed. Cir. 1998); *In re Goodman*, 11 F.3d 1046, 29 USPQ2d 2010 (Fed. Cir. 1993); *In re Longi*, 759 F.2d 887, 225 USPQ 645 (Fed. Cir. 1985); *In re Van Ornum*, 686 F.2d 937, 214 USPQ 761 (CCPA 1982); *In re Vogel*, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); and *In re Thorington*, 418 F.2d 528, 163 USPQ 644 (CCPA 1969).

A timely filed terminal disclaimer in compliance with 37 CFR 1.321(c) or 1.321(d) may be used to overcome an actual or provisional rejection based on a nonstatutory double patenting ground provided the conflicting application or patent either is shown to be commonly owned with this application, or claims an invention made as a result of activities undertaken within the scope of a joint research agreement.

Art Unit: 3636

Effective January 1, 1994, a registered attorney or agent of record may sign a terminal disclaimer. A terminal disclaimer signed by the assignee must fully comply with 37 CFR 3.73(b).

Claim 11 is rejected on the ground of nonstatutory obviousness-type double patenting as being unpatentable over claim 16 of U.S. Patent No. 7,997,644. Although the conflicting claims are not identical, they are not patentably distinct from each other because the examined claim is either anticipated by, or would have been obvious over the reference claim. Although the conflicting claims are not identical, they are not patentably distinct from each other because the examined claim is generic to all that is recited in claim 16 of the patent. In other words, claim 16, of the patent fully encompasses the subject matter of the examined claim and therefore anticipates the examined claim. Since the examined claim is anticipated by claim 16 of the patent, it is not patentably distinct from claim 16 of the patent. Thus the invention of claim 16 of the patent is in effect a species of the generic invention of the examined claim. It has been held that the generic invention is anticipated by the species. Since the examined claim is anticipated (fully encompassed) by claim 16 of the patent, the examined claim is not patentably distinct from claim 16 of the patent, regardless of any additional subject matter present in claim 16, respectively of the patent.

Claim Rejections - 35 USC § 112

The following is a quotation of the second paragraph of 35 U.S.C. 112:

The specification shall conclude with one or more claims particularly pointing out and distinctly claiming the subject matter which the applicant regards as his invention.

Claims 1-11 are rejected under 35 U.S.C. 112, second paragraph, as being indefinite for failing to particularly point out and distinctly claim the subject matter which applicant regards as the invention.

Claim 1 recites the limitation "the base" in line 4. There is insufficient antecedent basis for this limitation in the claim.

The remaining claims are indefinite since each depends from an indefinite claim.

Allowable Subject Matter

Claim 1 would be allowable if rewritten or amended to overcome the rejection(s) under 35 U.S.C. 112, 2nd paragraph, set forth in this Office action.

Claim 11 would be allowable if rewritten or amended to overcome the rejection(s) under 35 U.S.C. 112, 2nd paragraph, and nonstatutory obviousness-type double patenting, set forth in this Office action.

Claims 2-10 would be allowable if rewritten to overcome the rejection(s) under 35 U.S.C. 112, 2nd paragraph, set forth in this Office action and to include all of the limitations of the base claim and any intervening claims.

Claims 12-14 are allowed.

Response to Amendment/Arguments

Applicant's response filed June 29, 2012 has been fully considered. Remaining issues are described in the above sections. The rejection of claim 1 on the ground of nonstatutory obviousness-type double patenting as being unpatentable over claim 13 of

Art Unit: 3636

U.S. Patent No. 8,016,348, has been overcome in view of the terminal disclaimer filed June 29, 2012. The rejection of claim 11 on the ground of nonstatutory obviousness-type double patenting as being unpatentable over claim 16 of U.S. Patent No. 7,997,644 remains. The response filed June 29, 2012 does not address double patenting in regards to claim 11. Claims 1-11 remain rejected under 35 U.S.C. 112, 2nd paragraph. The rejections of claims 12-14 under 35 U.S.C. 112, 2nd paragraph have been overcome by amendment.

Conclusion

THIS ACTION IS MADE FINAL. Applicant is reminded of the extension of time policy as set forth in 37 CFR 1.136(a).

A shortened statutory period for reply to this final action is set to expire THREE MONTHS from the mailing date of this action. In the event a first reply is filed within TWO MONTHS of the mailing date of this final action and the advisory action is not mailed until after the end of the THREE-MONTH shortened statutory period, then the shortened statutory period will expire on the date the advisory action is mailed, and any extension fee pursuant to 37 CFR 1.136(a) will be calculated from the mailing date of the advisory action. In no event, however, will the statutory period for reply expire later than SIX MONTHS from the mailing date of this final action.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to MILTON NELSON JR whose telephone number is

Art Unit: 3636

(571)272-6861. The examiner can normally be reached on Mon-Thurs, and alternate Fridays, 5:30-3:00 EST.

The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Milton Nelson, Jr./
Primary Examiner, Art Unit 3636

mn
July 10, 2012

Search Notes 	Application/Control No. 13228746	Applicant(s)/Patent Under Reexamination HOFFMAN ET AL.
	Examiner MILTON NELSON JR	Art Unit 3636

SEARCHED			
Class	Subclass	Date	Examiner
297	85M, 69, Dig. 7	3/25/12	MN

SEARCH NOTES		
Search Notes	Date	Examiner
EAST, text	3/25/12	MN
All related cases checked	3/25/12	MN
EAST	7/10/12	MN

INTERFERENCE SEARCH			
Class	Subclass	Date	Examiner

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<i>Index of Claims</i> 	Application/Control No. 13228746	Applicant(s)/Patent Under Reexamination HOFFMAN ET AL.
	Examiner MILTON NELSON JR	Art Unit 3636

✓	Rejected	-	Cancelled	N	Non-Elected	A	Appeal
=	Allowed	÷	Restricted	I	Interference	O	Objected

☐ Claims renumbered in the same order as presented by applicant				☐ CPA		☐ T.D.		☐ R.1.47	
CLAIM		DATE							
Final	Original	03/25/2012	07/10/2012						
	1	✓	✓						
	2	✓	✓						
	3	✓	✓						
	4	✓	✓						
	5	✓	✓						
	6	✓	✓						
	7	✓	✓						
	8	✓	✓						
	9	✓	✓						
	10	✓	✓						
	11	✓	✓						
	12	✓	=						
	13	✓	=						
	14	✓	=						

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman
Application No.: 13/228,746
Filing Date: September 9, 2011
For: RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

Confirmation No: 8133
Art Unit: 3636
Examiner: Milton Nelson Jr.

Date: July 17, 2012

Mail Stop AMENDMENT
Commissioner for Patents
Box 1450
Alexandria, VA 22313-1450

AMENDMENT AND RESPONSE TO OFFICE ACTION DATED JULY 13, 2012

Sir:

This is responsive to the final Office Action mailed July 13, 2012 (hereinafter "the Action") regarding the above-referenced patent application. Please enter the following amendments and consider the following remarks.

Amendments to the Claims are set forth in the **Listing of Claims**, which begins on page 2 below.

Remarks begin on page 6 below.

LISTING OF CLAIMS

The following Listing of Claims replaces all prior versions.

1. (Currently amended) A seating unit, comprising:
 - a base unit with a first bearing surface;
 - a generally horizontally-disposed seat positioned above the base unit;
 - a generally upright backrest positioned above the base unit and substantially rearward of the seat;
 - an extendable ottoman;
 - a reclining mechanism attached to the seat, the backrest, the ottoman and the base unit, the reclining mechanism comprising a plurality of pivotally interconnected links;
 - a reciprocating mechanism attached to the base unit and the reclining mechanism, the reciprocating mechanism being configured to enable the seat, backrest and reclining mechanism to reciprocate relative to the base unit along a longitudinal path responsive to a longitudinally-directed force; and
 - a linear actuating unit attached to the reclining mechanism, the linear actuating unit configured to move the seating unit between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman is generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;
- wherein the linear actuating unit includes opposed first and second ends, and wherein the first end of the linear actuating unit moves forwardly as the seating unit moves from the upright position to the TV position, and wherein the second end of the linear actuating unit moves rearwardly when the seating unit moves from the TV position to the fully reclined position.
2. (original) The seating unit defined in Claim 1, wherein the reclining mechanism includes a pantographic linkage on which the ottoman is mounted, and wherein in the TV and

fully reclined positions, pivots between links of the pantographic linkage form a near over-center arrangement that locks the ottoman in position.

3. (original) The seating unit defined in Claim 1, further comprising a locking mechanism that allows the seating unit to reciprocate while in the upright position but prevents reciprocating of the seating unit while in the TV and fully reclined positions.

4. (original) The seating unit defined in Claim 1, wherein the linear actuating unit is attached to an actuating mechanism, the actuating mechanism comprising a cross-member extending transversely across the seating unit, wherein the cross-member is pivotally attached to the actuating unit; and wherein the cross-member is pivotally attached to a lower swing link of the reclining mechanism, the lower swing link being pivotally attached to an upper swing link of the reclining mechanism and to a mounting bracket that is attached to the reciprocating mechanism.

5. (original) The seating unit defined in Claim 4, wherein the upper swing link is pivotally attached with the backrest.

6. (original) The seating unit defined in Claim 1, wherein the seat rises in moving from the TV position to the fully reclined position.

7. (original) The seating unit defined in Claim 1, wherein the reclining mechanism includes a backpost that is fixed relative to the backrest, a mounting bracket that is fixed relative to the reciprocating mechanism and pivotally attached to the backpost, and a seat adapter that is fixed relative to the seat and pivotally attached to the backpost.

8. (original) The seating unit defined in Claim 7, wherein the lower swing link is angled, and wherein a segment of the lower swing link attached to the upper swing link is

generally parallel to an axis defined by an extendable member of the linear actuating unit when the seating unit is in the upright and TV positions.

9. (original) The seating unit defined in Claim 8, wherein a first pivot defined by the cross-member and the lower swing link and a second pivot defined by the lower swing link and the upper swing link are below the axis defined by the extendable member of the actuating unit when the seating unit is in the upright and TV positions.

10. (original) The seating unit defined in Claim 9, wherein the lower swing link is attached to the mounting bracket at a third pivot, and wherein in the upright and TV positions, the first, second and third pivots define a first angle, and in the fully reclined position, the first, second and third pivots define a second angle that is larger than the first angle.

11. (original) The seating unit defined in Claim 1, wherein the reciprocating mechanism is a gliding mechanism.

12. (previously presented) A reciprocating seating unit, comprising:
a base;
a generally horizontally-disposed seat positioned above the base;
a generally upright backrest positioned above the base and substantially rearward of the seat;
an extendable ottoman;
a reclining mechanism attached to the seat, the backrest, the ottoman and the base, the reclining mechanism comprising a plurality of pivotally interconnected links;
a reciprocating mechanism attached with the base unit and the reclining mechanism, the reciprocating mechanism configured to enable the seat, backrest and reclining mechanism to experience a longitudinally-directed reciprocating motion relative to the base unit; and
a linear actuator attached to the reclining mechanism, the linear actuator having first and second movable members, wherein the relative movement of the first and second movable

members moves the chair between (a) an upright position, in which the seat is generally horizontally disposed, the backrest is generally vertically disposed, and the ottoman ~~are~~ is generally vertically disposed and positioned below the seat, (b) an intermediate TV position, in which the ottoman is generally horizontally disposed in front of the seat and the backrest and the seat substantially maintain the same relationship as they have in the upright position, and (c) a fully reclined position, in which the angle between the backrest and the seat increases;

wherein the reclining mechanism includes:

a backpost that is fixed relative to the backrest;

a mounting bracket that is attached to the second movable member of the linear actuator;

a lower swing link that is attached to the mounting bracket; and

an upper swing link that is pivotally attached to the lower swing link and to the backpost.

13. (previously presented) The seating unit defined in Claim 12, further comprising a seat adapter that is fixed relative to the seat and directly pivotally attached to the backpost.

14. (previously presented) The reciprocating seating unit defined in Claim 13, wherein the reclining mechanism includes a pantographic linkage that extends the footrest in the TV and fully reclined positions, and wherein the pantographic linkage comprises upper and lower ottoman swing links that are directly pivotally attached to the seat adapter.

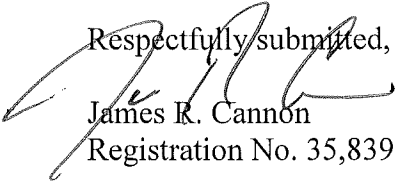
In re: D. Stephen Hoffman
Application No.: 13/228,746
Filing Date: September 9, 2011
Page 6

REMARKS

At the time of the Action, Claims 1-14 were pending. Claim 1 has been amended above to address rejections under Section 112, second paragraph. Claim 11 stands rejected under the doctrine of obviousness-type double patenting with respect to U.S. Patent No. 7,997,644. A Terminal Disclaimer has been filed concurrently to address this rejection.

The points and concerns raised in the Action having been addressed in full herein, it is respectfully submitted that this application is in condition for allowance, which action is respectfully requested. Should there be any remaining concerns, the Examiner is encouraged to contact the undersigned attorney by telephone to expedite the prosecution of this application.

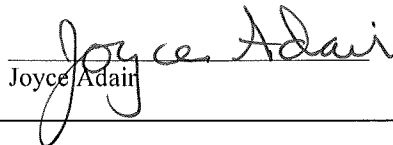
Respectfully submitted,


James R. Cannon
Registration No. 35,839

Customer Number 20792
Myers Bigel Sibley & Sajovec, P.A.
P.O. Box 37428
Raleigh, North Carolina 27627
Telephone: (919) 854-1400
Facsimile: (919) 854-1401

CERTIFICATION OF ELECTRONIC TRANSMISSION

I hereby certify that this correspondence is being transmitted via the Office electronic filing system in accordance with § 1.6(a)(4) to the U.S. Patent and Trademark Office on July 17, 2012.


Joyce Adair

**TERMINAL DISCLAIMER TO OBTAIN A DOUBLE PATENTING
REJECTION OVER A "PRIOR" PATENT**

Docket Number (Optional)
4362-1381PCT

In re Application of: D. Stephen Hoffman

Application No.: 13/228,746

Filed: September 9, 2011

For: Reciprocating Seating Unit with Power Actuator

The owner*, Ultra-Mek, Inc., of 100 percent interest in the instant application hereby disclaims, except as provided below, the terminal part of the statutory term of any patent granted on the instant application which would extend beyond the expiration date of the full statutory term **prior patent** No. 7,997,644 as the term of said prior patent is defined in 35 U.S.C. 154 and 173, and as the term of said **prior patent** is presently shortened by any terminal disclaimer. The owner hereby agrees that any patent so granted on the instant application shall be enforceable only for and during such period that it and the **prior patent** are commonly owned. This agreement runs with any patent granted on the instant application and is binding upon the grantee, its successors or assigns.

In making the above disclaimer, the owner does not disclaim the terminal part of the term of any patent granted on the instant application that would extend to the expiration date of the full statutory term as defined in 35 U.S.C. 154 and 173 of the **prior patent**, "as the term of said **prior patent** is presently shortened by any terminal disclaimer," in the event that said **prior patent** later:

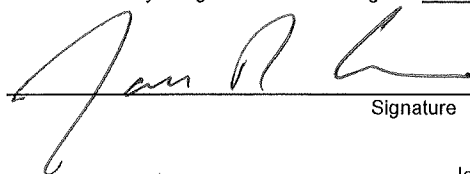
- expires for failure to pay a maintenance fee;
- is held unenforceable;
- is found invalid by a court of competent jurisdiction;
- is statutorily disclaimed in whole or terminally disclaimed under 37 CFR 1.321;
- has all claims canceled by a reexamination certificate;
- is reissued; or
- is in any manner terminated prior to the expiration of its full statutory term as presently shortened by any terminal disclaimer.

Check either box 1 or 2 below, if appropriate.

1. ☐ For submissions on behalf of a business/organization (e.g., corporation, partnership, university, government agency, etc.), the undersigned is empowered to act on behalf of the business/organization.

I hereby declare that all statements made herein of my own knowledge are true and that all statements made on information and belief are believed to be true; and further that these statements were made with the knowledge that willful false statements and the like so made are punishable by fine or imprisonment, or both, under Section 1001 of Title 18 of the United States Code and that such willful false statements may jeopardize the validity of the application or any patent issued thereon.

2. ☒ The undersigned is an attorney or agent of record. Reg. No. 35,839



Signature

July 17, 2012

Date

James R. Cannon
Typed or printed name

919 854 1400
Telephone Number

- ☒ Terminal disclaimer fee under 37 CFR 1.20(d) included.

WARNING: Information on this form may become public. Credit card information should not be included on this form. Provide credit card information and authorization on PTO-2038.

*Statement under 37 CFR 3.73(b) is required if terminal disclaimer is signed by the assignee (owner).
Form PTO/SB/96 may be used for making this certification. See MPEP § 324.

This collection of information is required by 37 CFR 1.321. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.11 and 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.

Electronic Patent Application Fee Transmittal

Application Number:	13228746			
Filing Date:	09-Sep-2011			
Title of Invention:	Reciprocating Seating Unit with Power Actuator			
First Named Inventor/Applicant Name:	D. Stephen Hoffman			
Filer:	James R. Cannon/Joyce Adair			
Attorney Docket Number:	4362-138IPCT			
Filed as Small Entity				
Utility under 35 USC 111(a) Filing Fees				
Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Pages:				
Claims:				
Miscellaneous-Filing:				
Petition:				
Patent-Appeals-and-Interference:				
Post-Allowance-and-Post-Issuance:				
Extension-of-Time:				

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Miscellaneous:				
Statutory or terminal disclaimer	2814	1	80	80
Total in USD (\$)				80

Electronic Acknowledgement Receipt

EFS ID:	13272664
Application Number:	13228746
International Application Number:	
Confirmation Number:	8133
Title of Invention:	Reciprocating Seating Unit with Power Actuator
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Adair
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138IPCT
Receipt Date:	17-JUL-2012
Filing Date:	09-SEP-2011
Time Stamp:	15:41:23
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Deposit Account
Payment was successfully received in RAM	\$80
RAM confirmation Number	2284
Deposit Account	500220
Authorized User	

The Director of the USPTO is hereby authorized to charge indicated fees and credit any overpayment as follows:

Charge any Additional Fees required under 37 C.F.R. Section 1.21 (Miscellaneous fees and charges)

File Listing:					
Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1		4362-138IPCT.pdf	616908 d23cd06f23427aa6d1a5aaf66b98e6de2f7cf444	yes	7
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Amendment After Final		1	1	
	Claims		2	5	
	Applicant Arguments/Remarks Made in an Amendment		6	6	
	Terminal Disclaimer Filed		7	7	
Warnings:					
Information:					
2	Fee Worksheet (SB06)	fee-info.pdf	29938 c6d63f0e16dd2191e1bc65fa55eca3bb24f9b17	no	2
Warnings:					
Information:					
Total Files Size (in bytes):			646846		
This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503. <u>New Applications Under 35 U.S.C. 111</u> If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application. <u>National Stage of an International Application under 35 U.S.C. 371</u> If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course. <u>New International Application Filed with the USPTO as a Receiving Office</u> If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.					

Application Number 	Application/Control No. 13/228,746	Applicant(s)/Patent under Reexamination HOFFMAN ET AL.	
Document Code - DISQ		Internal Document – DO NOT MAIL	

TERMINAL DISCLAIMER	☒ APPROVED	☐ DISAPPROVED
Date Filed : 7/17/12	This patent is subject to a Terminal Disclaimer	

Approved/Disapproved by:

Lawana Hixon

Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.

PATENT APPLICATION FEE DETERMINATION RECORD Substitute for Form PTO-875					Application or Docket Number 13/228,746		Filing Date 09/09/2011		☐ To be Mailed	
APPLICATION AS FILED – PART I										
(Column 1)			(Column 2)			SMALL ENTITY ☒ OR		OTHER THAN SMALL ENTITY		
FOR	NUMBER FILED	NUMBER EXTRA	RATE (\$)	FEE (\$)	OR	RATE (\$)	FEE (\$)			
☐ BASIC FEE (37 CFR 1.16(a), (b), or (c))	N/A	N/A	N/A			N/A				
☐ SEARCH FEE (37 CFR 1.16(k), (l), or (m))	N/A	N/A	N/A			N/A				
☐ EXAMINATION FEE (37 CFR 1.16(o), (p), or (q))	N/A	N/A	N/A			N/A				
TOTAL CLAIMS (37 CFR 1.16(j))	minus 20 =	*	X \$	=	OR	X \$	=			
INDEPENDENT CLAIMS (37 CFR 1.16(h))	minus 3 =	*	X \$	=		X \$	=			
☐ APPLICATION SIZE FEE (37 CFR 1.16(s))	If the specification and drawings exceed 100 sheets of paper, the application size fee due is \$250 (\$125 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR 1.16(s).									
☐ MULTIPLE DEPENDENT CLAIM PRESENT (37 CFR 1.16(j))										
			TOTAL			TOTAL				
APPLICATION AS AMENDED – PART II										
(Column 1)			(Column 2)			SMALL ENTITY OR		OTHER THAN SMALL ENTITY		
AMENDMENT	07/17/2012	CLAIMS REMAINING AFTER AMENDMENT	HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)	OR	RATE (\$)	ADDITIONAL FEE (\$)	
	Total (37 CFR 1.16(i))	* 14	Minus	** 20	= 0	X \$30 =	0	OR	X \$ =	
	Independent (37 CFR 1.16(h))	* 2	Minus	*** 3	= 0	X \$125 =	0	OR	X \$ =	
	☐ Application Size Fee (37 CFR 1.16(s))									
	☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))									
					TOTAL ADD'L FEE	0	OR	TOTAL ADD'L FEE		
AMENDMENT	Total (37 CFR 1.16(i))	*	Minus	**	=	X \$ =		OR	X \$ =	
	Independent (37 CFR 1.16(h))	*	Minus	***	=	X \$ =		OR	X \$ =	
	☐ Application Size Fee (37 CFR 1.16(s))									
	☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))									
					TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE		
* If the entry in column 1 is less than the entry in column 2, write "0" in column 3. ** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 20, enter "20". *** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 3, enter "3". The "Highest Number Previously Paid For" (Total or Independent) is the highest number found in the appropriate box in column 1.										

Legal Instrument Examiner:
/ERIC DANTZLER/

This collection of information is required by 37 CFR 1.16. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. **SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

If you need assistance in completing the form, call 1-800-PTO-9199 and select option 2.



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NOTICE OF ALLOWANCE AND FEE(S) DUE

20792 7590 07/23/2012
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

EXAMINER

NELSON JR, MILTON

ART UNIT

PAPER NUMBER

3636

DATE MAILED: 07/23/2012

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
-----------------	-------------	----------------------	---------------------	------------------

13/228,746

09/09/2011

D. Stephen Hoffman

4362-138IPCT

8133

TITLE OF INVENTION: RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

APPLN. TYPE	SMALL ENTITY	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
nonprovisional	YES	\$870	\$300	\$0	\$1170	10/23/2012

THE APPLICATION IDENTIFIED ABOVE HAS BEEN EXAMINED AND IS ALLOWED FOR ISSUANCE AS A PATENT. PROSECUTION ON THE MERITS IS CLOSED. THIS NOTICE OF ALLOWANCE IS NOT A GRANT OF PATENT RIGHTS. THIS APPLICATION IS SUBJECT TO WITHDRAWAL FROM ISSUE AT THE INITIATIVE OF THE OFFICE OR UPON PETITION BY THE APPLICANT. SEE 37 CFR 1.313 AND MPEP 1308.

THE ISSUE FEE AND PUBLICATION FEE (IF REQUIRED) MUST BE PAID WITHIN THREE MONTHS FROM THE MAILING DATE OF THIS NOTICE OR THIS APPLICATION SHALL BE REGARDED AS ABANDONED. THIS STATUTORY PERIOD CANNOT BE EXTENDED. SEE 35 U.S.C. 151. THE ISSUE FEE DUE INDICATED ABOVE DOES NOT REFLECT A CREDIT FOR ANY PREVIOUSLY PAID ISSUE FEE IN THIS APPLICATION. IF AN ISSUE FEE HAS PREVIOUSLY BEEN PAID IN THIS APPLICATION (AS SHOWN ABOVE), THE RETURN OF PART B OF THIS FORM WILL BE CONSIDERED A REQUEST TO REAPPLY THE PREVIOUSLY PAID ISSUE FEE TOWARD THE ISSUE FEE NOW DUE.

HOW TO REPLY TO THIS NOTICE:

I. Review the SMALL ENTITY status shown above.

If the SMALL ENTITY is shown as YES, verify your current SMALL ENTITY status:

A. If the status is the same, pay the TOTAL FEE(S) DUE shown above.

B. If the status above is to be removed, check box 5b on Part B - Fee(s) Transmittal and pay the PUBLICATION FEE (if required) and twice the amount of the ISSUE FEE shown above, or

If the SMALL ENTITY is shown as NO:

A. Pay TOTAL FEE(S) DUE shown above, or

B. If applicant claimed SMALL ENTITY status before, or is now claiming SMALL ENTITY status, check box 5a on Part B - Fee(s) Transmittal and pay the PUBLICATION FEE (if required) and 1/2 the ISSUE FEE shown above.

II. PART B - FEE(S) TRANSMITTAL, or its equivalent, must be completed and returned to the United States Patent and Trademark Office (USPTO) with your ISSUE FEE and PUBLICATION FEE (if required). If you are charging the fee(s) to your deposit account, section "4b" of Part B - Fee(s) Transmittal should be completed and an extra copy of the form should be submitted. If an equivalent of Part B is filed, a request to reapply a previously paid issue fee must be clearly made, and delays in processing may occur due to the difficulty in recognizing the paper as an equivalent of Part B.

III. All communications regarding this application must give the application number. Please direct all communications prior to issuance to Mail Stop ISSUE FEE unless advised to the contrary.

IMPORTANT REMINDER: Utility patents issuing on applications filed on or after Dec. 12, 1980 may require payment of maintenance fees. It is patentee's responsibility to ensure timely payment of maintenance fees when due.

PART B - FEE(S) TRANSMITTAL

**Complete and send this form, together with applicable fee(s), to: Mail Mail Stop ISSUE FEE
Commissioner for Patents
P.O. Box 1450
Alexandria, Virginia 22313-1450
or Fax (571)-273-2885**

INSTRUCTIONS: This form should be used for transmitting the ISSUE FEE and PUBLICATION FEE (if required). Blocks 1 through 5 should be completed where appropriate. All further correspondence including the Patent, advance orders and notification of maintenance fees will be mailed to the current correspondence address as indicated unless corrected below or directed otherwise in Block 1, by (a) specifying a new correspondence address; and/or (b) indicating a separate "FEE ADDRESS" for maintenance fee notifications.

CURRENT CORRESPONDENCE ADDRESS (Note: Use Block 1 for any change of address)

Note: A certificate of mailing can only be used for domestic mailings of the Fee(s) Transmittal. This certificate cannot be used for any other accompanying papers. Each additional paper, such as an assignment or formal drawing, must have its own certificate of mailing or transmission.

20792 7590 07/23/2012
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

Certificate of Mailing or Transmission

I hereby certify that this Fee(s) Transmittal is being deposited with the United States Postal Service with sufficient postage for first class mail in an envelope addressed to the Mail Stop ISSUE FEE address above, or being facsimile transmitted to the USPTO (571) 273-2885, on the date indicated below.

(Depositor's name)
(Signature)
(Date)

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
-----------------	-------------	----------------------	---------------------	------------------

13/228,746 09/09/2011 D. Stephen Hoffman 4362-138IPCT 8133

TITLE OF INVENTION: RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

APPLN. TYPE	SMALL ENTITY	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
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nonprovisional YES \$870 \$300 \$0 \$1170 10/23/2012

EXAMINER	ART UNIT	CLASS-SUBCLASS
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NELSON JR, MILTON 3636 297-259200

1. Change of correspondence address or indication of "Fee Address" (37 CFR 1.363).

- ☐ Change of correspondence address (or Change of Correspondence Address form PTO/SB/122) attached.
☐ "Fee Address" indication (or "Fee Address" Indication form PTO/SB/47; Rev 03-02 or more recent) attached. **Use of a Customer Number is required.**

2. For printing on the patent front page, list

- (1) the names of up to 3 registered patent attorneys or agents OR, alternatively, 1 _____
(2) the name of a single firm (having as a member a registered attorney or agent) and the names of up to 2 registered patent attorneys or agents. If no name is listed, no name will be printed. 2 _____
3 _____

3. ASSIGNEE NAME AND RESIDENCE DATA TO BE PRINTED ON THE PATENT (print or type)

PLEASE NOTE: Unless an assignee is identified below, no assignee data will appear on the patent. If an assignee is identified below, the document has been filed for recordation as set forth in 37 CFR 3.11. Completion of this form is NOT a substitute for filing an assignment.

(A) NAME OF ASSIGNEE (B) RESIDENCE: (CITY and STATE OR COUNTRY)

Please check the appropriate assignee category or categories (will not be printed on the patent) : ☐ Individual ☐ Corporation or other private group entity ☐ Government

4a. The following fee(s) are submitted:

- ☐ Issue Fee
☐ Publication Fee (No small entity discount permitted)
☐ Advance Order - # of Copies _____

4b. Payment of Fee(s); (Please first reapply any previously paid issue fee shown above)

- ☐ A check is enclosed.
☐ Payment by credit card. Form PTO-2038 is attached.
☐ The Director is hereby authorized to charge the required fee(s), any deficiency, or credit any overpayment, to Deposit Account Number _____ (enclose an extra copy of this form).

5. Change in Entity Status (from status indicated above)

- ☐ a. Applicant claims SMALL ENTITY status. See 37 CFR 1.27. ☐ b. Applicant is no longer claiming SMALL ENTITY status. See 37 CFR 1.27(g)(2).

NOTE: The Issue Fee and Publication Fee (if required) will not be accepted from anyone other than the applicant; a registered attorney or agent; or the assignee or other party in interest as shown by the records of the United States Patent and Trademark Office.

Authorized Signature _____ Date _____

Typed or printed name _____ Registration No. _____

This collection of information is required by 37 CFR 1.311. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, Virginia 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, Virginia 22313-1450.

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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
13/228,746	09/09/2011	D. Stephen Hoffman	4362-138IPCT	8133

20792	7590	07/23/2012
MYERS BIGEL SIBLEY & SAJOVEC		
PO BOX 37428		
RALEIGH, NC 27627		

EXAMINER	
NELSON JR, MILTON	

ART UNIT	PAPER NUMBER
3636	

DATE MAILED: 07/23/2012

Determination of Patent Term Adjustment under 35 U.S.C. 154 (b) (application filed on or after May 29, 2000)

The Patent Term Adjustment to date is 0 day(s). If the issue fee is paid on the date that is three months after the mailing date of this notice and the patent issues on the Tuesday before the date that is 28 weeks (six and a half months) after the mailing date of this notice, the Patent Term Adjustment will be 0 day(s).

If a Continued Prosecution Application (CPA) was filed in the above-identified application, the filing date that determines Patent Term Adjustment is the filing date of the most recent CPA.

Applicant will be able to obtain more detailed information by accessing the Patent Application Information Retrieval (PAIR) WEB site (<http://pair.uspto.gov>).

Any questions regarding the Patent Term Extension or Adjustment determination should be directed to the Office of Patent Legal Administration at (571)-272-7702. Questions relating to issue and publication fee payments should be directed to the Customer Service Center of the Office of Patent Publication at 1-(888)-786-0101 or (571)-272-4200.

Privacy Act Statement

The Privacy Act of 1974 (P.L. 93-579) requires that you be given certain information in connection with your submission of the attached form related to a patent application or patent. Accordingly, pursuant to the requirements of the Act, please be advised that: (1) the general authority for the collection of this information is 35 U.S.C. 2(b)(2); (2) furnishing of the information solicited is voluntary; and (3) the principal purpose for which the information is used by the U.S. Patent and Trademark Office is to process and/or examine your submission related to a patent application or patent. If you do not furnish the requested information, the U.S. Patent and Trademark Office may not be able to process and/or examine your submission, which may result in termination of proceedings or abandonment of the application or expiration of the patent.

The information provided by you in this form will be subject to the following routine uses:

1. The information on this form will be treated confidentially to the extent allowed under the Freedom of Information Act (5 U.S.C. 552) and the Privacy Act (5 U.S.C. 552a). Records from this system of records may be disclosed to the Department of Justice to determine whether disclosure of these records is required by the Freedom of Information Act.
2. A record from this system of records may be disclosed, as a routine use, in the course of presenting evidence to a court, magistrate, or administrative tribunal, including disclosures to opposing counsel in the course of settlement negotiations.
3. A record in this system of records may be disclosed, as a routine use, to a Member of Congress submitting a request involving an individual, to whom the record pertains, when the individual has requested assistance from the Member with respect to the subject matter of the record.
4. A record in this system of records may be disclosed, as a routine use, to a contractor of the Agency having need for the information in order to perform a contract. Recipients of information shall be required to comply with the requirements of the Privacy Act of 1974, as amended, pursuant to 5 U.S.C. 552a(m).
5. A record related to an International Application filed under the Patent Cooperation Treaty in this system of records may be disclosed, as a routine use, to the International Bureau of the World Intellectual Property Organization, pursuant to the Patent Cooperation Treaty.
6. A record in this system of records may be disclosed, as a routine use, to another federal agency for purposes of National Security review (35 U.S.C. 181) and for review pursuant to the Atomic Energy Act (42 U.S.C. 218(c)).
7. A record from this system of records may be disclosed, as a routine use, to the Administrator, General Services, or his/her designee, during an inspection of records conducted by GSA as part of that agency's responsibility to recommend improvements in records management practices and programs, under authority of 44 U.S.C. 2904 and 2906. Such disclosure shall be made in accordance with the GSA regulations governing inspection of records for this purpose, and any other relevant (i.e., GSA or Commerce) directive. Such disclosure shall not be used to make determinations about individuals.
8. A record from this system of records may be disclosed, as a routine use, to the public after either publication of the application pursuant to 35 U.S.C. 122(b) or issuance of a patent pursuant to 35 U.S.C. 151. Further, a record may be disclosed, subject to the limitations of 37 CFR 1.14, as a routine use, to the public if the record was filed in an application which became abandoned or in which the proceedings were terminated and which application is referenced by either a published application, an application open to public inspection or an issued patent.
9. A record from this system of records may be disclosed, as a routine use, to a Federal, State, or local law enforcement agency, if the USPTO becomes aware of a violation or potential violation of law or regulation.

Notice of Allowability

Application No.

13/228,746

Examiner

MILTON NELSON JR

Applicant(s)

HOFFMAN ET AL.

Art Unit

3636

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address--

All claims being allowable, PROSECUTION ON THE MERITS IS (OR REMAINS) CLOSED in this application. If not included herewith (or previously mailed), a Notice of Allowance (PTOL-85) or other appropriate communication will be mailed in due course. **THIS NOTICE OF ALLOWABILITY IS NOT A GRANT OF PATENT RIGHTS.** This application is subject to withdrawal from issue at the initiative of the Office or upon petition by the applicant. See 37 CFR 1.313 and MPEP 1308.

1. ☒ This communication is responsive to Applicant's amendment of 7/17/12.
2. ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
3. ☒ The allowed claim(s) is/are 1-14.
4. ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
 - a) ☐ All b) ☐ Some* c) ☐ None of the:
 1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this national stage application from the International Bureau (PCT Rule 17.2(a)).

* Certified copies not received: ____.

Applicant has THREE MONTHS FROM THE "MAILING DATE" of this communication to file a reply complying with the requirements noted below. Failure to timely comply will result in ABANDONMENT of this application.

THIS THREE-MONTH PERIOD IS NOT EXTENDABLE.

5. ☐ A SUBSTITUTE OATH OR DECLARATION must be submitted. Note the attached EXAMINER'S AMENDMENT or NOTICE OF INFORMAL PATENT APPLICATION (PTO-152) which gives reason(s) why the oath or declaration is deficient.
 6. ☐ CORRECTED DRAWINGS (as "replacement sheets") must be submitted.
 - (a) ☐ including changes required by the Notice of Draftsperson's Patent Drawing Review (PTO-948) attached
 - 1) ☐ hereto or 2) ☐ to Paper No./Mail Date ____.
 - (b) ☐ including changes required by the attached Examiner's Amendment / Comment or in the Office action of Paper No./Mail Date ____.
- Identifying indicia such as the application number (see 37 CFR 1.84(c)) should be written on the drawings in the front (not the back) of each sheet. Replacement sheet(s) should be labeled as such in the header according to 37 CFR 1.121(d).**
7. ☐ DEPOSIT OF and/or INFORMATION about the deposit of BIOLOGICAL MATERIAL must be submitted. Note the attached Examiner's comment regarding REQUIREMENT FOR THE DEPOSIT OF BIOLOGICAL MATERIAL.

Attachment(s)

1. ☐ Notice of References Cited (PTO-892)
2. ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948)
3. ☐ Information Disclosure Statements (PTO/SB/08), Paper No./Mail Date ____
4. ☐ Examiner's Comment Regarding Requirement for Deposit of Biological Material
5. ☐ Notice of Informal Patent Application
6. ☐ Interview Summary (PTO-413), Paper No./Mail Date ____
7. ☐ Examiner's Amendment/Comment
8. ☐ Examiner's Statement of Reasons for Allowance
9. ☒ Other Examiner's Remarks.

EXAMINER'S REMARKS

Terminal Disclaimer

The terminal disclaimer filed on July 17, 2012 disclaiming the terminal portion of any patent granted on this application which would extend beyond the expiration date of U.S. Patent No. 7,997,644 has been reviewed and is accepted. The terminal disclaimer has been recorded.

Allowable Subject Matter

Claims 1-14 are allowed.

Conclusion

Any inquiry concerning this communication or earlier communications from the examiner should be directed to MILTON NELSON JR whose telephone number is (571)272-6861. The examiner can normally be reached on Mon-Thurs, and alternate Fridays, 5:30-3:00 EST.

The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Art Unit: 3636

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Milton Nelson, Jr./
Primary Examiner, Art Unit 3636

mn
July 19, 2012

OK TO ENTER: /MN/

Attorney Docket No. 4362-138IPCT

PATENT

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re: D. Stephen Hoffman
Application No.: 13/228,746
Filing Date: September 9, 2011
For: RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

Confirmation No: 8133
Art Unit: 3636
Examiner: Milton Nelson Jr.

Date: July 17, 2012

Mail Stop AMENDMENT
Commissioner for Patents
Box 1450
Alexandria, VA 22313-1450

AMENDMENT AND RESPONSE TO OFFICE ACTION DATED JULY 13, 2012

Sir:

This is responsive to the final Office Action mailed July 13, 2012 (hereinafter "the Action") regarding the above-referenced patent application. Please enter the following amendments and consider the following remarks.

Amendments to the Claims are set forth in the **Listing of Claims**, which begins on page 2 below.

Remarks begin on page 6 below.

Search Notes 	Application/Control No. 13228746	Applicant(s)/Patent Under Reexamination HOFFMAN ET AL.
	Examiner MILTON NELSON JR	Art Unit 3636

SEARCHED			
Class	Subclass	Date	Examiner
297	85M, 69, Dig. 7	3/25/12	MN
updated		7/19/12	MN

SEARCH NOTES		
Search Notes	Date	Examiner
EAST, text	3/25/12	MN
All related cases checked	3/25/12	MN
EAST	7/10/12	MN
EAST, text, fwd/bwd	7/19/12	MN

INTERFERENCE SEARCH			
Class	Subclass	Date	Examiner
297	85M, 69, Dig. 7	7/19/12	MN

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 United States Patent and Trademark Office
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BIB DATA SHEET

CONFIRMATION NO. 8133

SERIAL NUMBER 13/228,746	FILING or 371(c) DATE 09/09/2011 RULE	CLASS 297	GROUP ART UNIT 3636	ATTORNEY DOCKET NO. 4362-138IPCT	
APPLICANTS D. Stephen Hoffman, High Point, NC; Marcus L. Murphy, Lexington, NC; ** CONTINUING DATA ***** This application is a CON of 12/508,901 07/24/2009 PAT 8,016,348 which is a CIP of 12/276,567 11/24/2008 PAT 7,997,644 ** FOREIGN APPLICATIONS ***** ** IF REQUIRED, FOREIGN FILING LICENSE GRANTED ** ** SMALL ENTITY ** 09/20/2011					
Foreign Priority claimed ☐ Yes ☒ No 35 USC 119(a-d) conditions met ☐ Yes ☒ No Verified and /MILTON NELSON Acknowledged JR/ Examiner's Signature	☐ Met after Allowance Initials	STATE OR COUNTRY NC	SHEETS DRAWINGS 8	TOTAL CLAIMS 14	INDEPENDENT CLAIMS 2
ADDRESS MYERS BIGEL SIBLEY & SAJOVEC PO BOX 37428 RALEIGH, NC 27627 UNITED STATES					
TITLE Reciprocating Seating Unit with Power Actuator					
FILING FEE RECEIVED 462	FEES: Authority has been given in Paper No. _____ to charge/credit DEPOSIT ACCOUNT No. _____ for following:		☐ All Fees ☐ 1.16 Fees (Filing) ☐ 1.17 Fees (Processing Ext. of time) ☐ 1.18 Fees (Issue) ☐ Other _____ ☐ Credit		

<i>Index of Claims</i> 	Application/Control No. 13228746	Applicant(s)/Patent Under Reexamination HOFFMAN ET AL.
	Examiner MILTON NELSON JR	Art Unit 3636

✓	Rejected	-	Cancelled	N	Non-Elected	A	Appeal
=	Allowed	÷	Restricted	I	Interference	O	Objected

☒ Claims renumbered in the same order as presented by applicant					☐ CPA		☒ T.D.		☐ R.1.47	
CLAIM		DATE								
Final	Original	03/25/2012	07/10/2012	07/19/2012						
	1	✓	✓	=						
	2	✓	✓	=						
	3	✓	✓	=						
	4	✓	✓	=						
	5	✓	✓	=						
	6	✓	✓	=						
	7	✓	✓	=						
	8	✓	✓	=						
	9	✓	✓	=						
	10	✓	✓	=						
	11	✓	✓	=						
	12	✓	=	=						
	13	✓	=	=						
	14	✓	=	=						

EAST Search History

EAST Search History (Prior Art)

Ref #	Hits	Search Query	DBs	Default Operator	Plurals	Time Stamp
L1	62	(297/85M).OCLS.	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2012/07/19 08:07
L2	220	(297/69).OCLS.	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2012/07/19 08:11
L3	138	(297/Dig.7).OCLS.	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2012/07/19 08:12
L4	763	seating and base and reclining and backrest	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2012/07/19 08:13
L5	21	reciprocating and l4	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2012/07/19 08:13
L6	9	l5 and linear	US-PGPUB; USPAT; USOCR; FPRS; EPO; JPO; DERWENT; IBM_TDB	OR	OFF	2012/07/19 08:13
L11	35	("0809944" "1507613" "1754703" "1952963" "1984281" "2634796" "3572829" "3801122" "3941417" "4061397" "Re28210" "Re29483").PN. OR ("4212495").URPN.	US-PGPUB; USPAT; USOCR	OR	OFF	2012/07/19 08:14
L12	36	("20060249993" "20070046075" "20070158980" "20070241589" "20080012396" "4113305" "4212495"	US-PGPUB; USPAT; USOCR	OR	OFF	2012/07/19 08:15

		"4506925" "4577902" "4662673" "5141284" "5147108" "5156441" "5192113" "5217276" "5271660" "5292170" "5527095" "5570927" "5975627" "5992930" "6135559" "6145924" "6231120" "6409262" "6557934" "6637813" "6644733" "6793279" "6945599" "7011362" "7114770" "7147278").PN. OR ("7445279").URPN.				
L13	50	("2564762" "2714922" "2770233" "2944595" "3016264" "3147038" "3433527" "3476495" "3522969" "3588170" "3719391" "3934927" "4007960" "4061397" "4183578").PN. OR ("4365836").URPN.	US-PGPUB; USPAT; USOCR	OR	OFF	2012/07/19 08:16

7/ 19/ 2012 8:19:38 AM
C:\ Users\ mnelson\ Documents\ EAST\ Workspaces\ 13228746.wsp

Issue Classification 	Application No.	Applicant(s)	
	13/228,746	HOFFMAN ET AL.	
	Examiner	Art Unit	
	MILTON NELSON JR	3636	

ISSUE CLASSIFICATION												
ORIGINAL					CROSS REFERENCE(S)							
CLASS		SUBCLASS			CLASS	SUBCLASS (ONE SUBCLASS PER BLOCK)						
297		85M										
INTERNATIONAL CLASSIFICATION												
A	4	7	C	1/031								
				/								
				/								
				/								
				/								
----- (Assistant Examiner) (Date)					/Milton Nelson, Jr./ 7/19/12 (Primary Examiner) (Date)					Total Claims Allowed: 14		
----- (Legal Instruments Examiner) (Date)										O.G. Print Claim(s) 1	O.G. Print Fig. 2	

☒ Claims renumbered in the same order as presented by applicant						☐ CPA		☒ T.D.		☐ R.1.47	
Final	Original	Final	Original	Final	Original	Final	Original	Final	Original	Final	Original
	1		31		61		91		121		151
	2		32		62		92		122		152
	3		33		63		93		123		153
	4		34		64		94		124		154
	5		35		65		95		125		155
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PART B - FEE(S) TRANSMITTAL

Complete and send this form, together with applicable fee(s), to: **Mail** Mail Stop ISSUE FEE
Commissioner for Patents
P.O. Box 1450
Alexandria, Virginia 22313-1450
or Fax (571)-273-2885

INSTRUCTIONS: This form should be used for transmitting the ISSUE FEE and PUBLICATION FEE (if required). Blocks 1 through 5 should be completed where appropriate. All further correspondence including the Patent, advance orders and notification of maintenance fees will be mailed to the current correspondence address as indicated unless corrected below or directed otherwise in Block 1, by (a) specifying a new correspondence address; and/or (b) indicating a separate "FEE ADDRESS" for maintenance fee notifications.

CURRENT CORRESPONDENCE ADDRESS (Note: Use Block 1 for any change of address)

Note: A certificate of mailing can only be used for domestic mailings of the Fee(s) Transmittal. This certificate cannot be used for any other accompanying papers. Each additional paper, such as an assignment or formal drawing, must have its own certificate of mailing or transmission.

20792 7590 07/23/2012
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

Certificate of Mailing or Transmission

I hereby certify that this Fee(s) Transmittal is being deposited with the United States Postal Service with sufficient postage for first class mail in an envelope addressed to the Mail Stop ISSUE FEE address above, or being facsimile transmitted to the USPTO (571) 273-2885, on the date indicated below.

(Depositor's name)
(Signature)
(Date)

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
13/228,746	09/09/2011	D. Stephen Hoffman	4362-138IPCT	8133

TITLE OF INVENTION: RECIPROCATING SEATING UNIT WITH POWER ACTUATOR

APPLN. TYPE	SMALL ENTITY	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
nonprovisional	YES	\$870	\$300	\$0	\$1170	10/23/2012

EXAMINER	ART UNIT	CLASS-SUBCLASS
NELSON JR, MILTON	3636	297-259200

1. Change of correspondence address or indication of "Fee Address" (37 CFR 1.363). ☐ Change of correspondence address (or Change of Correspondence Address form PTO/SB/122) attached. ☐ "Fee Address" indication (or "Fee Address" Indication form PTO/SB/47; Rev 03-02 or more recent) attached. Use of a Customer Number is required.	2. For printing on the patent front page, list (1) the names of up to 3 registered patent attorneys or agents OR, alternatively, (2) the name of a single firm (having as a member a registered attorney or agent) and the names of up to 2 registered patent attorneys or agents. If no name is listed, no name will be printed.	1 Myers Bigel Sibley & Sajovec 2 3
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3. ASSIGNEE NAME AND RESIDENCE DATA TO BE PRINTED ON THE PATENT (print or type)

PLEASE NOTE: Unless an assignee is identified below, no assignee data will appear on the patent. If an assignee is identified below, the document has been filed for recordation as set forth in 37 CFR 3.11. Completion of this form is NOT a substitute for filing an assignment.

(A) NAME OF ASSIGNEE

(B) RESIDENCE: (CITY and STATE OR COUNTRY)

Ultra-Mek, Inc.

Denton, North Carolina

Please check the appropriate assignee category or categories (will not be printed on the patent): ☐ Individual ☒ Corporation or other private group entity ☐ Government

4a. The following fee(s) are submitted:

- ☒ Issue Fee
- ☒ Publication Fee (No small entity discount permitted)
- ☐ Advance Order - # of Copies _____

4b. Payment of Fee(s): (Please first reapply any previously paid issue fee shown above)

- ☐ A check is enclosed.
- ☐ Payment by credit card. Form PTO-2038 is attached.
- ☒ The Director is hereby authorized to charge the required fee(s), any deficiency, or credit any overpayment, to Deposit Account Number 30-6220 (enclose an extra copy of this form).

5. Change in Entity Status (from status indicated above)

- ☐ a. Applicant claims SMALL ENTITY status. See 37 CFR 1.27. ☐ b. Applicant is no longer claiming SMALL ENTITY status. See 37 CFR 1.27(g)(2).

NOTE: The Issue Fee and Publication Fee (if required) will not be accepted from anyone other than the applicant; a registered attorney or agent; or the assignee or other party in interest as shown by the records of the United States Patent and Trademark Office.

Authorized Signature _____

Date 9/27/12

Typed or printed name James R. Cannon

Registration No. 35,839

This collection of information is required by 37 CFR 1.311. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, Virginia 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, Virginia 22313-1450.

Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.

Electronic Patent Application Fee Transmittal

Application Number:	13228746			
Filing Date:	09-Sep-2011			
Title of Invention:	RECIPROCATING SEATING UNIT WITH POWER ACTUATOR			
First Named Inventor/Applicant Name:	D. Stephen Hoffman			
Filer:	James R. Cannon/Joyce Adair			
Attorney Docket Number:	4362-138IPCT			
Filed as Small Entity				
Utility under 35 USC 111(a) Filing Fees				
Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Pages:				
Claims:				
Miscellaneous-Filing:				
Petition:				
Patent-Appeals-and-Interference:				
Post-Allowance-and-Post-Issuance:				
Utility Appl issue fee	2501	1	870	870
Publ. Fee- early, voluntary, or normal	1504	1	300	300

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Extension-of-Time:				
Miscellaneous:				
Total in USD (\$)				1170

Electronic Acknowledgement Receipt

EFS ID:	13855303
Application Number:	13228746
International Application Number:	
Confirmation Number:	8133
Title of Invention:	RECIPROCATING SEATING UNIT WITH POWER ACTUATOR
First Named Inventor/Applicant Name:	D. Stephen Hoffman
Customer Number:	20792
Filer:	James R. Cannon/Joyce Adair
Filer Authorized By:	James R. Cannon
Attorney Docket Number:	4362-138IPCT
Receipt Date:	27-SEP-2012
Filing Date:	09-SEP-2011
Time Stamp:	15:22:55
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Deposit Account
Payment was successfully received in RAM	\$ 1170
RAM confirmation Number	1949
Deposit Account	500220
Authorized User	

The Director of the USPTO is hereby authorized to charge indicated fees and credit any overpayment as follows:

Charge any Additional Fees required under 37 C.F.R. Section 1.21 (Miscellaneous fees and charges)

File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1	Issue Fee Payment (PTO-85B)	4362-138IPCT-IssueFee.pdf	167653	no	1
			0d2258bb6f81d6289ec04afc9571deb60b6fe8f9		

Warnings:**Information:**

2	Fee Worksheet (SB06)	fee-info.pdf	31700	no	2
			299c925e8278a72c4fe0527c5de26f334e21adfe		

Warnings:**Information:**

Total Files Size (in bytes):			199353
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This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503.

New Applications Under 35 U.S.C. 111

If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application.

National Stage of an International Application under 35 U.S.C. 371

If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course.

New International Application Filed with the USPTO as a Receiving Office

If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.

11/10/2009		Complete if Known	
INFORMATION DISCLOSURE STATEMENT BY APPLICANT (use as many sheets as necessary)		Application Number	Not yet assigned
		Filing Date	September 9, 2011
		First Named Inventor	D. Stephen Hoffman
		Art Unit	TBA
		Examiner Name	TBA
Sheet A2	of A2	Attorney Docket Number	4362-138IPCT

Charge(s) applied
to document,

/S.P.
9/11/

39.	US-	3,637,255	01-1972	Re, Frank M.	
40.	US-	3,622,202	11-23-1971	Brown	
41.	US-	3,622,198	11-1971	Re, Frank M.	
42.	US-	3,493,264	02-1970	Re, Frank M.	
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44.	US-	3,352,601	11-1967	Izchak Cycowicz	
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49.	US-	2,526,623 A	10-24-1950	Maurer	
50.	US-	0,507,270 A	10-24-1893	Name Not Available	Hirschfeld
51.	US-	2006/0082195 A1	04-20-2006	Jiang	

FOREIGN PATENT DOCUMENTS

Examiner Initials*	Cite No.	Foreign Patent Document Country Code, Number, Kind Code (if known)	Publication Date MM-DD-YYYY	Name of Patentee or Applicant of Cited Document	Pages, Columns, Lines, Where Relevant Passages or Relevant Figures Appear	T
	52.	GB 2 106 777 A	04-20-1983	Stella-Mobelwerk GmbH (DE)		Abstra ct

NON PATENT LITERATURE DOCUMENTS

Examiner Initials*	Cite No.	Include name of the author (in CAPITAL LETTERS), title of the article (when appropriate), title of the item (book, magazine, journal, serial, symposium, catalog, etc.), date, page(s), volume-issue number(s), publisher, city and/or country where published	T
	53.	Lusch Brochure: "Functional Fitting and Tubular steel frames for Relaxing Chairs (11 pages), Functional Fittings for Sofabeds and Beds (10 pages), Bed Fitting (5 pages) and Upholstery joints and accessories for furniture (9 pages)", (available before April 7, 2006).	Yes
	54.	"Stawett Functional Bed Mechanisms Brochure", pp. 3-93 (2001).	Yes

Examiner Signature	/Milton Nelson, Jr/	Date Considered	03/25/2012
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

ALL REFERENCES CONSIDERED EXCEPT WHERE LINED THROUGH. /MN/



UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

APPLICATION NO.	ISSUE DATE	PATENT NO.	ATTORNEY DOCKET NO.	CONFIRMATION NO.
13/228,746	10/30/2012	8297693	4362-138IPCT	8133

20792 7590 10/10/2012
MYERS BIGEL SIBLEY & SAJOVEC
PO BOX 37428
RALEIGH, NC 27627

ISSUE NOTIFICATION

The projected patent number and issue date are specified above.

Determination of Patent Term Adjustment under 35 U.S.C. 154 (b) (application filed on or after May 29, 2000)

The Patent Term Adjustment is 0 day(s). Any patent to issue from the above-identified application will include an indication of the adjustment on the front page.

If a Continued Prosecution Application (CPA) was filed in the above-identified application, the filing date that determines Patent Term Adjustment is the filing date of the most recent CPA.

Applicant will be able to obtain more detailed information by accessing the Patent Application Information Retrieval (PAIR) WEB site (<http://pair.uspto.gov>).

Any questions regarding the Patent Term Extension or Adjustment determination should be directed to the Office of Patent Legal Administration at (571)-272-7702. Questions relating to issue and publication fee payments should be directed to the Application Assistance Unit (AAU) of the Office of Data Management (ODM) at (571)-272-4200.

APPLICANT(s) (Please see PAIR WEB site <http://pair.uspto.gov> for additional applicants):

D. Stephen Hoffman, High Point, NC;
Marcus L. Murphy, Lexington, NC;

The United States represents the largest, most dynamic marketplace in the world and is an unparalleled location for business investment, innovation, and commercialization of new technologies. The USA offers tremendous resources and advantages for those who invest and manufacture goods here. Through SelectUSA, our nation works to encourage and facilitate business investment. To learn more about why the USA is the best country in the world to develop technology, manufacture products, and grow your business, visit SelectUSA.gov.



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UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

APPLICATION NUMBER	FILING OR 371(C) DATE	FIRST NAMED APPLICANT	ATTY.DOCKET NO./TITLE	REQUEST ID
13/228,746	09/09/2011	D. Stephen Hoffman	4362-138IPCT	10473

Acknowledgement of Loss of Entitlement to Entity Status Discount

The entity status change request below filed through Private PAIR on 01/15/2016 has been accepted.

CERTIFICATIONS:

Change of Entity Status:

✕ Applicant changing to regular undiscounted fee status.

NOTE: Checking this box will be taken to be notification of loss of entitlement to small or micro entity status, as applicable.

This portion must be completed by the signatory or signatories making the entity status change in accordance with 37 CFR 1.4(d)(4).

Signature:	/James R. Cannon/
Name:	James R. Cannon
Registration Number:	35839